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U.S. Department of State Diplomacy in Action

Cameroon

Country Reports on Human Rights Practices
Bureau of Democracy, Human Rights, and Labor
2000
February 23, 2001

Cameroon is a republic dominated by a strong presidency. Since independence a single party, now called the Cameroon People's Democratic Movement (CPDM), has remained in power and limited political choice. In October 1997, CPDM leader Paul Biya won reelection as President in an election boycotted by the three main opposition parties, marred by a wide range of procedural flaws, and generally considered by observers not to be free and fair. Although the Government legalized opposition parties in 1990 after widespread protests, most subsequent elections, including the May 1997 legislative elections, which were dominated by the CPDM, were flawed by numerous irregularities. International and local observers generally consider the election process, which is controlled by the Government's Ministry of Territorial Administration, as not free and fair. No President has ever left office in consequence of an election. The President retains the power to control legislation or to rule by decree. In the National Assembly, government bills take precedence over other bills, and no bills other than government bills have been enacted since 1991, although the Assembly sometimes has not enacted legislation proposed by the Government. The President repeatedly has used his control of the legislature to change the Constitution. The 1996 Constitution lengthened the President's term of office to 7 years, while continuing to allow Biya to run for a fourth consecutive term in 1997 and making him eligible to run for one more 7-year term in 2004. In July the Government began discussions on an action plan to create the decentralized institutions envisioned in the 1996 constitution, such as a partially elected senate, elected regional councils, and a more independent judiciary. Government timetables for establishing these bodies extend until 2004. Although the country's first local government elections were held in 1996, President Biya limited their scope in many pro-opposition cities by expanding the number of municipal governments led by presidentially appointed delegates rather than headed by mayors chosen by the directly-elected municipal councils. The Government remained highly centralized and is dominated by the presidency. The judiciary is subject to political influence and suffers from corruption and inefficiency.

Internal security responsibilities are shared by the national police (DGSN), the National Intelligence Service (DGRE), the gendarmerie, the Ministry of Territorial Administration, military intelligence, the army, and to a lesser extent, the Presidential Guard. On February 20, the Government created a military Operational Command to fight crime in Douala and the Littoral Province. The police and the gendarmerie have dominant roles in enforcing internal security laws. The security forces, including the military forces, remain under the effective control of the President, the civilian Minister of Defense, and the civilian head of police. The security forces continued to commit numerous serious human rights abuses.

The country's population of approximately 15 million had a recorded mean per capita Gross National Product (GNP) of approximately \$607. Economic growth has continued over the past 4 years, despite decreases in world prices for the country's major primary product exports. Over the past 3 years, GNP growth has averaged 4 to 5 percent annually; however, economic recovery continues to be inhibited by a large inefficient parastatal sector, excessive public sector employment, and the Government's inability to deregulate the economy to attract more investment. Widespread corruption in government and business also impedes growth. Members of the Beti and Bulu ethnic groups dominate the civil service and the management of state-owned businesses. The majority of the population is rural, and agriculture accounts for 25 percent of GNP. Principal exports include timber, coffee, cocoa, cotton, bananas, and rubber. The Government also continued to receive substantial assistance from international financial institutions.

The Government's human rights record continued to be generally poor, and government officials continued to commit numerous serious abuses. Citizens' ability to change their government remained limited. Security forces committed numerous extrajudicial killings; were responsible for disappearances, some of which may have been motivated politically; and tortured, often beat, and otherwise abused detainees and prisoners, generally with impunity. However, the Government prosecuted a few of the most egregious offenders, including some who were convicted and sentenced to prison terms and others who remain in prison awaiting trial. Conditions remained harsh and life threatening in almost all prisons, although the Government granted international humanitarian organizations access to prisoners. Security forces continued to arrest and detain arbitrarily various opposition politicians, local human rights monitors, and other citizens, often holding them for prolonged periods, often without charges or a chance for trial and, at times, incommunicado. The judiciary remained corrupt, inefficient, and subject to political influence. At times military tribunals exercise criminal jurisdiction over civilians, which in the past denied some civilians fair trials. Security forces conducted illegal searches and harassed citizens. The Government infringed on citizens' privacy and monitored and harassed some opposition activists. The Government continued to impose limits on press freedom. Although private newspapers enjoyed considerable latitude to publish their views, journalists continued to be subject to official and, on occasion, serious harassment. There were no reports that the Government seized newspaper editions; however, the Government continued its prosecutions of pro-opposition journalists under criminal libel laws. The Government continued to obtain convictions against journalists under these laws. In July the Government implemented a 1990 law designed to end its virtual monopoly of domestic broadcast media. Five radio stations subsequently applied for licenses to operate and continued to broadcast pending final authorization. The Government restricted freedom of assembly and association. At times the Government used its security forces to inhibit political parties from holding public meetings. Government security forces limited freedom of movement. Violence and discrimination against women remained serious problems. The abuse of children was a problem and female genital mutilation (FGM) persisted in some areas. Discrimination against indigenous Pygmies continued. Societal discrimination based on religion persisted in some areas. Discrimination against ethnic minorities remained widespread. The Government continued to infringe on workers' rights, and restricted the activities of independent labor organizations. Child labor remained a serious problem. Slavery reportedly persisted in northern parts of the country. Forced labor, including forced child labor, was a problem. There were reports of trafficking in persons, primarily children, for purposes of forced labor. Mob violence continued to result in some deaths.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There were no confirmed reports of political killings; however, the security forces continued to use excessive, lethal force against private citizens and committed numerous extrajudicial killings.

In mid-January Atangana, a gendarme serving at the Douala port, shot and killed Alhadji Bapetel, a customs officer also serving at the port. The shooting followed a quarrel over authority issues. The Government arrested the gendarme, who was awaiting trial on charges of "assault occasioning death" at year's end.

On March 2, an unidentified Douala soldier, who reportedly was drunk, shot and killed Pascal Kalo, a young Nigerian businessman. The death occurred after the soldier shot wildly at a group of customers who left the bar without paying their bill, but instead hit Kalo, who was eating dinner in a nearby restaurant. Reportedly there was no investigation nor action taken in this case by year's end.

On April 6, police officers beat to death Emmanuel Ebanda, a porter at the Douala International Airport (see Section 1.c.). The police claim that Ebanda died because he beat his own head against the wall; however, a jailed witness contests these charges, claiming that he called repeatedly for medical assistance for Ebanda, but that the police ignored his pleas. The police investigated the case and on August 21, three police officers were arrested; they remained in detention pending trial at year's end.

On May 7, a police officer by the name of Bahiga shot and killed Laurent Abbe in Yaounde, allegedly during an illegal search of Abbe's friend's residence (see Section 1.f.). The Government arrested Bahiga, who was in detention pending trial at year's end.

On May 11 in Yaounde, a mixed patrol of police officers, gendarmes, and soldiers attempted to seize a vehicle illegally for non-emergency purposes. The driver loudly disputed the seizure, and attracted a crowd that began to laugh at the security forces. One of the officers, angered by the laughter, shot indiscriminately at the crowd, killing two women. Reportedly there was no investigation nor action taken in this case by year's end.

On May 29, police officers from the Yaounde special operation grouping (GSO) detained, tortured, and killed Edouard Leuwat, a Yaounde taxicab driver (see Section 1.c.). One GSO policeman, with assistance from other officers, had arrested Leuwat without warrant on May 28, believing Leuwat to be the driver of a taxicab in which the policeman had left his handgun on May 27. Leuwat denied the charge, and the policeman tortured Leuwat to extract a confession. The Government arrested eight police officers involved in the case and charged them with "torture having resulted in death." On June 20, the Government transferred the eight to the Yaounde-based Kondengui Central Prison, where they were awaiting trial at year's end.

On June 21, security officers shot two alleged bandits in Yaounde's Nlongkak Circle, killing one. A neighborhood resident walked up to the remaining, incapacitated bandit and slit his throat with a machete. Reportedly there was no investigation nor action taken in this case by year's end.

On September 14, Mathew Titiahonjo, who gendarmes at the NDOP brigade in the Northwest Province had arrested and detained on May 23, died in prison reportedly from torture (see Sections 1.c. and 1.d.).

On October 28, Operational Command Sergeant Jean Claude Mbita allegedly shot and killed Luc-Benoit Bassilekin, a technician, while attempting to arrest him; Bassilekin's brother was arrested. In November the Government announced that it had arrested Mbita on charges of intentional homicide; he remained in detention pending trial at year's end.

On October 30, Operational Command officers reportedly shot and killed Paul Petchueke, a taxicab driver, because Petchueke had attempted to make a U-turn in front of a command roadblock. On November 13, the Government announced that it had arrested Paul Essoh, a soldier at the Douala Airbase, on charges of unintentional homicide for Petchueke's killing; he remained in detention at Douala New Bell prison pending trial at year's end.

There were reports that the Douala Operational Command committed numerous summary executions, which totaled at least several dozens. There were reports that some persons were tortured before they were killed (see Section 1.c.). This special military unit, created to fight crime in Douala, operates above the authority of other security forces currently in the city. This command killed some suspects in shoot-outs and high-speed car chases during the year. It also reportedly used a network of informants, including a large number of convicted criminals and prison officials, to obtain the names of suspected bandits who they then arrested and summarily executed. The Operational Command also used neighborhood sweeps to search for criminals, occasionally executing suspects for minor offenses such as smoking marijuana. Press and other reports allege that

the Operational Command has several mass graves, including in the "Forest of Monkeys" (Bois des Singes) and off the "Old Road" between Douala and Edea, where bodies were abandoned in pits or buried. Cardinal Tumi, the Archbishop of Douala, estimated the total number of extrajudicial killings committed by the Operational Command to be as high as 500.

Credible reports by the press and the Maroua-based Movement for the Defense of Human Rights and Liberties (MDHRL), one of the few operating human rights organizations in the Far North Province, describe a large but undetermined number of extrajudicial killings perpetrated by a special antigang gendarmerie unit tasked with combating highwaymen. This unit was created under the direct authority of the Minister of Defense and operates outside the normal chain of command for law-and-order units. While some armed suspects were killed in firefights with security forces, there were credible reports that others caught in dragnet operations were executed summarily. Families of the deceased and human rights NGO's have accused the head of this unit, Colonel Pom, of extrajudicial killings of local civilians. The MDHRL estimated that up to 1000 persons have been killed since the beginning of 1998. The Government's National Commission on Human Rights and Freedoms (NCHRF) corroborated this information, although it was unable to determine the exact number of persons killed, since many of the victims' families are too frightened to speak with human rights groups. At least one private newspaper, the Yaounde-based tri-weekly Mutations, also reported in 1998 that security forces summarily executed hundreds of alleged highway robbers in northern areas of the country during recent years.

Numerous prisoners died in custody due to abuse inflicted by members of the security forces or harsh prison conditions and inadequate medical treatment (see Section 1.c.).

In November 1999, the U.N. released a report by the Special Rapporteur on Torture, Nigel Rodley, regarding his visit to the country in May 1999. In this report, Rodley noted that torture and long-term detention is widespread. He also commented on deaths resulting from torture and extrajudicial killings, primarily in the Far North Province (see Sections 1.c. and 4), but he did not provide any specific examples of such deaths.

In November the Government announced plans to investigate alleged killings by the Douala Operational Command. In the fall, the National Human Rights Commission, under the Prime Minister, sent teams to Douala to investigate. Although two reports were produced for the President and the Prime Minister, there are no plans to release the reports publicly.

There were no known developments in the following 1999 cases: The January 1999 killing of Yves Atiback by a gendarme captain; the February 1999, killing of three Fulani shepherds by villagers acting on the orders of the Fon of Bali; the March 1999 killing of Denis Nzidchen by prison guards; the September 1999 beating death of Theopole Mbasi Ombe by three members of the presidential guard; the October 1999 beating death of Frederic Djomeli by police in the Haut-Nkam division.

On April 12, the Yaounde higher court sentenced police officer Francois Bilongo to seven years in jail and \$10,000 in damages for the 1998 killing of Leonard Fouda. In May Police Constable Kuete Pierre was convicted and sentenced to 14 years in prison for the June 1998 police shooting of truck driver Jean-Marie Penga at a roadblock in Douala.

There were no known developments in three open 1998 cases: The reported January 1998 police killing of Serge Francois Massoma; the June 1998 police killing of a 17-year-old male during racial violence against whites in Yaounde. Two gendarmes reportedly facing manslaughter charges in connection with the 1998 killing of an Anglophone barkeeper who died while in detention, reportedly as a result of torture, remained in detention at year's end.

There continued to be no developments in the 1997 security force killing of Faustin Fetsogo and the killing of five persons in 1997 during opposition politician Koulagne Nana's election campaign following a skirmish with the forces of a traditional ruler loyal to the ruling party.

While ethnic conflicts caused deaths in previous years (see Sections 1.c. and 5), there were no reports of such deaths during the year.

Mob violence and summary justice directed against suspected thieves and those suspected of practicing witchcraft and other crimes reportedly continued to result in a number of deaths and serious injuries. Although the number of reported cases of mob killings had diminished in past years, increased crime in the major cities of Douala and Yaounde caused a rise in such incidents during the year. On April 5, a thief was stripped naked, beaten unconscious, and burned alive by a mob. On March 9, a mob reportedly killed two suspected thieves by burning tires around their necks. On April 14, a crowd of citizens in Buea, Southwest Province, beat to death Jean-Paul Kamdem and Alfred Mbakwa Fowa, alleged members of a gang that stole electronic items from a businessman's home (see Section 1.c.).

b. Disappearance

There were reports of disappearances of persons in the custody of security forces. Some disappearances may be attributed to summary executions by security forces in Douala or the northern regions (see Section 1.a.); in these instances, bodies rarely are found, although the suspects are presumed dead.

On May 9, plain clothes security officials in Mamfe, Manyu Division, Southwest Province, searched the homes of John Enow, Joseph Tafong, Chief Assam, Mathias Takunchung, and several others, without search warrants. The victims' families have neither seen nor heard from the victims since that time, and believe that the security forces summarily executed them. In a letter written on May 12 and sent to the National Human Rights Commission, the families claim that more than 30 people have disappeared in Mamfe under similar circumstances. According to the commission, four persons still were missing at year's end.

In August 10 of the 13 refugees from Equatorial Guinea detained at a military base since 1998 left for refugee resettlement in another country (see Section 1.d.). Three refugees disappeared before they could depart; however, they were believed to have returned voluntarily to Equatorial Guinea or to have established unofficial residence in the country.

The Government did not initiate any public investigation into any of these disappearances by year's end, nor did the Government investigate the 1998 disappearances of Chadian refugees Jim Temba and El Hadj Bakeye, Chadian herders, or the truck driver Mahamat Oumar.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Penal Code proscribes torture, renders inadmissible in court evidence obtained thereby, and prohibits public servants from using undue force against any person; however, although President Biya also promulgated a law in 1997 that bans torture by government officials, there were numerous credible reports that security forces, including the Operational Command, continued to torture, beat, and otherwise abuse prisoners and detainees. There were reports that security forces, including the Operational Command, detained persons at specific sites where they tortured and beat detainees (see Section 1.d.). The Operational Command reportedly tortured some persons before summarily executing them (see Section 1.a.). The U.N. Special Rapporteur on Torture, Nigel Rodley, in his report on the country released in November 1999, stated that torture was widespread and used indiscriminately against persons under arrest or detained. Security forces also reportedly subjected women, children, and elderly people to ill-treatment. Most cases apparently were not reported to the relevant authorities because of ignorance, lack of confidence, or fear of reprisals on the part of the victims and their families. In New Bell and other nonmaximum-security penal detention centers, beatings are common and prisoners reportedly are chained or flogged at times in their cells. However, the authorities often administer beatings not in prison facilities, but in temporary detention areas in a police or gendarmerie facility. Two forms of physical abuse commonly reported to be inflicted on detainees include the "bastinado," in which the victim is beaten on the soles of the feet, and the "balancoire," in which the victim, with his hands tied behind his back, is hung from a rod and beaten, often on the genitals. Nonviolent political activists often have been subjected to such punitive physical abuse during brief detentions following roundups of participants in antigovernment demonstrations or opposition party political rallies.

Security forces subjected prisoners and detainees to degrading treatment that includes stripping, confinement in severely overcrowded cells, and denial of access to toilets or other sanitation facilities. Police and gendarmes often beat detainees to extract confessions and the names and whereabouts of alleged criminals. In his report, U.N. Special Rapporteur Rodley noted that the Government increasingly was moving toward punishing offenders, but that "some of those incriminated act out of ignorance and others out of pure habit, for they have regularly acted that way for a long time without fear of any consequences." Pretrial detainees sometimes were required, under threat of abuse, to pay so-called "cell fees" (essentially a bribe to the prison guards to prevent further abuse).

On January 27, security forces intervened in a student strike at the University of Douala (see Sections 1.d. and 2.b.). The police used water cannons and nightsticks on the students, which resulted in eight injuries; police also beat several students severely.

On January 28, four gendarmes reportedly arrested and tortured customs inspector Vincent Nkengfua, who they suspected of kidnaping a child. The gendarmes also arrested, detained, and tortured all the workers at Nkengfua's plantation in Mbanga, including a child (see Section 1.d.). In September Nkengfua filed a lawsuit against the gendarmes with the Mbanga High Court for abuse of power, arbitrary arrest and seizure of property, false evidence, calumny, and torture. The status of the lawsuit was unknown at year's end.

On March 27, a crowd dragged Jean-Paul Kentsa to the Tsinga gendarmerie station in Yaounde after a woman claimed that he had tried to kidnap her 7-year-old son. After listening to the woman's statement, a gendarme began beating Kentsa, without allowing Kentsa to tell his side of the story. According to a witness, the gendarme tied his arms and legs and subjected him to "balancoire" torture for over half an hour. When a crowd formed to watch the beating, the gendarme beat two of the onlookers without cause using a machete.

On April 6, police officers beat to death Emmanuel Ebanda, a porter at the Douala International Airport (see Section 1.a.). The police are investigating the case, though no charges have been filed against the officers.

On April 20, government security forces reportedly attacked the parish of Notre Dame de Sept Douleurs in Douala during a Mass. Security forces reportedly arrested some parishioners and beat others (see Sections 1.d. and 2.c.).

On April 27, a gendarme officer serving at the mobile gendarmerie unit, Abessolo-Abessolo, assaulted, beat, and seriously injured Nico Ajong in Ajong's tailoring store in the Yaounde neighborhood of Ngoa-Ekelle. The gendarme entered Ajong's workshop, demanded the identity cards of Ajong and a customer, and pocketed Ajong's identity card. When Ajong asked why the gendarme had taken his identity card, Abessolo-Abessolo began beating Ajong on the face and body. A medical report indicated that the resulting injuries incapacitated Ajong for 21 days.

On April 27, Bessala, a soldier on patrol in the Yaounde neighborhood of Coron, shot Cecile Ngono. Ngono was a passenger in a taxicab that did not stop at a police checkpoint, and when Bessala shot at the car, he hit and wounded Ngono.

In April a gendarme in Limbe, Southwest Province, beat and tortured a foreign volunteer teaching at the government bilingual high school. The gendarme interrogated the volunteer about his connections with the Southern Cameroons National Council (SCNC), an organization which calls for secession of the two English-speaking Anglophone provinces.

On May 1, Dieudonne Dibong, a police officer, shot at a Yaounde cab after the cab ignored his traffic directions, seriously wounding the driver and the occupants of the vehicle. The General Delegate for National Security (DGSN) ordered disciplinary sanctions, and the Government arrested Dibong, whose trial was pending at year's end.

On May 23, police and gendarmes forcibly dispersed a demonstration by students of the University of Yaounde, in which students protested the poor road conditions that killed 14 persons in a May 17 bus accident (see Section 2.b.). Police arrested approximately 50 students and severely beat several of them (see Section 1.d.).

On May 23, gendarmes at the NDOP brigade in the Northwest Province arrested and detained Mathew Titiahonjo, Nathaniel Ntam, John Nivame, and several others (see Section 1.d.), and beat and tortured Titiahonjo and Nivame. One of the gendarmes claimed he suspected the men of belonging to a group of bandits who reportedly accosted him on May 19, seized his gun, pulled off his shoes, and tied him to a palm tree. According to the victims, Nivame caught the gendarme asleep with Nivame's girlfriend and stole the gendarme's shoes and gun in retaliation. On September 14, Titiahonjo died in prison reportedly from torture (see Section 1.a.); the Prime Minister released the remaining nine on October 31.

On May 25, officers of the GSO police unit arrested Madeleine Ngo Songane, the sister of an alleged bandit. They took her to their headquarters and beat her violently in an effort to extract information on the whereabouts of her brother.

On May 28, the same GSO police officers in Yaounde who tortured Edouard Leuwat to death (see Section 1.a.), arrested and tortured Achille Tchoumba Heubo, also in an effort to extract a confession concerning the officer's lost gun.

On May 29, Edouard Leuwat, a Yaounde taxicab driver, died in custody as a result of torture by police officers from the Yaounde special operation grouping (GSO) (see Section 1.a.). The Government arrested eight police officers involved in the case and charged them with "torture having resulted in death." On June 20, the Government transferred the eight to the Yaounde-based Kondengui Central Prison, where they were awaiting trial at year's end.

In June in Ndop, Northwest Province, a gendarme who had lost his gun enlisted the support of his brigade to search for the weapon without a warrant. Press reports indicated the gendarmes ransacked homes and business, assaulting citizens in the process (see Section 1.f.).

On the night of June 7, a police patrol from the Yaounde 8 police district arrested and beat Beatrice Elouga for failing to carry her national identity card (see Sections 1.d. and 2.d.).

In early June, a gendarme officer identified as Okala, alias Tohmugwah, threw a hand grenade into a bar at Belo, Northwest Province, wounding several people. Okala apparently was angry with Amina Nyonghabi, the bartender, who wanted the gendarme to pay the bill for the drinks he had consumed. The previous day, the same gendarme slapped Nyonghabi in the face twice when she requested that he pay his bar bill.

In early June, soldiers at a military garrison near the intendance roundabout in Yaounde brutalized and stripped naked Amelie, a young female soccer player with "Canon-filles," a Yaounde-based soccer team. Amelie was returning home with her boyfriend when the soldiers demanded her identification. The gendarmes accused her of holding a fake national identity card with a female name, and, after beating Amelie, the soldiers decided to strip her naked publicly to verify her gender, only to realize that she had spoken the truth and her identity card was authentic.

On July 27, Police Commissioner Theophile Tocko arrested Magloire Evouta, a businessman, at a Yaounde hotel. Evouta, who suffered from a chronic illness, was denied medical treatment and died at the Yaounde judicial police station on August 2. On August 28, the President dismissed Tocko from his position; Tocko was arrested and in detention pending trial at year's end.

On September 12, members of the Operational Command unit of the Mboppi Brigade allegedly raped two young girls. The girls reportedly were detained because their identification papers were damaged partially by water.

On November 13, security forces forcibly dispersed a march by opposition SDF parliamentarians in Yaounde (see Sections 2.b. and 3). Security forces arrested several marchers, seized journalists' cameras, and beat one journalist (see Sections 1.d. and 2.a.).

Security forces harassed and threatened journalists (see Section 2.a.). For example, on April 15 and 16, a gendarme patrol detained Alex Lembe, a journalist with Afrik Netpress, and demanded his identity card (see Section 2.a.). When the patrol commander realized he was a journalist, he insulted Lembe, beat him, and held him overnight.

Security forces frequently used roadblocks to exact bribes or thwart opposition political activities (see Section 2.d.).

In the vast majority of cases of torture or abuse, the Government rarely investigated or punished any of the security officials involved.

Seke Columban, the police commissioner in Guider, North Province, beat Madi Baddai while arresting him in a nightclub in September 1999, and during a subsequent 4-day detention, causing serious injuries. Although Madi Baddai filed charges against the commissioner, no action had been taken by year's end.

At year's end, the Buea military tribunal was preparing to try the commander of the 11th Navy Battalion and two noncommissioned officers in connection with looting and alleged beatings and rapes of civilians by naval cadets in the Anglophone Southwest Province port of Limbe in November 1998. There were no developments in other 1998 cases of nonlethal violence by security forces.

On June 16, the Yaounde Court of First Instance sentenced Leon Ongolo, a Yaounde police commissioner, to 6 months imprisonment, a \$70 (50,000 CFA) fine, and \$450 (300,000 CFA) in victim damages, for brutalizing his neighbors over a dispute concerning electrical wiring in 1996.

Mob violence directed against suspected thieves reportedly continued to result in a number of deaths, some because of beatings or torture (see Section 1.a.).

Prison conditions remained harsh and life threatening. Prisons are seriously overcrowded, unsanitary, and inadequate, especially outside major urban areas. Serious deficiencies in food, health care, and sanitation due to a lack of funds are common in almost all prisons, including in "private prisons" in the north operated by traditional rulers. U.N. Special Rapporteur Rodley described prison conditions in the country as "universally appalling." Rodley also reported that: "overcrowding, unhygienic sanitation, lack of health care, and shortage of food, reportedly are the main failings in the Cameroonian prison system. These conditions cannot be blamed only on lack of financial or material resources, but also result from deliberate policies or serious neglect on the part of the relevant officials." Rodley wrote that these conditions are "endangering the health and even the lives of the detainees." Prisoners are kept in dilapidated colonial-era prisons, where the number of detainees is four to five times the original capacity. Authorities confirmed to Rodley that one cell measuring 6 square meters housed 16 people; one prisoner stated that the cell sometimes held up to 23 people. Health and medical care almost are nonexistent, and prisoners' families are expected to provide food for their relatives in prison. Prison officials torture, beat, and otherwise abuse prisoners (see Section 1.c.). Rodley reported that the vast majority of those in detention had been tortured or abused. Rodley specified cases of machete beatings, toenails being ripped out, and victims shot by police who had received no medical attention. Prisoners routinely die due to harsh prison conditions and inadequate medical treatment. In Douala's New Bell Prison, there were only 7 water taps for a reported 3,500 prisoners; this contributed to poor hygiene, illness, and deaths. In New Bell and other nonmaximum-security penal detention centers, families are permitted to provide food and medicine to inmates; however, beatings are common. Prisoners reportedly are chained or flogged at times in their cells and often are denied adequate medical care. In April the new Minister of Territorial Administration and the new Secretary of State for Territorial Administration in charge of penitentiary administration visited Douala and Yaounde prisons. The Yaounde prison was so dirty that the Minister ordered the immediate release of funds for repainting. In Douala the Minister said that the prison would be improved with funding from a foreign government; however, the project had not been implemented fully by year's end.

Credible press reports indicate that Douala's New Bell prison, originally built for 600 inmates, held more than 3,500 during the year, of which 2,000 were pre-trial detainees. A 1997 report on prison conditions indicated that Bertoua Prison, which was built to hold 50 inmates, housed over 700 persons. The Kondengui Central Prison in Yaounde, constructed in 1967 to hold 1,500 inmates and equipped with only 16 toilets or showers and 400 beds, held approximately 3,300 inmates, including 700 women during the year. In 1999 the government official in charge of prisons said that the Central Prison of Bafoussam, built for 320 inmates, held 3,140 persons. Press reports indicate that the Bamenda Central Prison, built for 300 inmates, currently

holds 900 persons, approximately 750 of whom are pre-trial detainees. Overcrowding is exacerbated by the large number of long pretrial detentions and the practice of "Friday arrests" (see Section 1.d.). According to credible press reports, more than 1,400 of the inmates of the Douala prison were pretrial detainees, whereas only 900 were convicted prisoners.

Juveniles and nonviolent prisoners often are incarcerated with adults, although not usually in the same cells. There are credible reports of sexual abuse of juvenile prisoners by adult inmates. Corruption among prison personnel is widespread. Persons awaiting trial routinely are held in cells with hardened criminals. There are few detention centers for women; women routinely are held in prison complexes with men, occasionally in the same cells. Mothers often are incarcerated with their children or babies. The U.N. Special Rapporteur on Torture reported that he saw at least one 14-year-old child being kept with adult offenders, one woman being held in the same cell as male prisoners, and one woman incarcerated with her 9-month-old child. Some high-profile prisoners are able to avoid some of the abuse that security forces routinely inflict on many common criminals. They are kept in elite wings of certain prisons, where they enjoy relatively lenient treatment.

On March 14, a group of detainees in the Douala Central Prison addressed a letter to the governor of the Littoral Province, complaining about the conditions of their detention. They charged that many prisoners must sleep on the ground and without shelter from rain due to lack of floor space within the crowded prison.

Numerous NGO's, diplomatic missions, and the NCHRF all have criticized publicly the conditions of the group of Anglophone detainees arrested in 1997. One reliable report described 28 detainees sharing a cell measuring 14 square meters (about 140 square feet). At least eight of the original detainees reportedly have died from abuse or lack of medical care: Emmanuel Konseh, Samuel Tita, Mathias Gwei, Neba Ambe, Mado Nde, Richard Fomusoh Ngwa, Patrick Jimbou, and Lawrence Fai.

In the north, the Government permits traditional Lamibe (chiefs) to detain persons outside the government penitentiary system, in effect in "private prisons." The places of detention in the palaces of the traditional chiefs of Rey Bouba, Gashiga, Bibemi, and Tcheboa have the reputation of seriously mistreating their inmates. Members of the National Union for Democracy and Progress (UNDP) party, which was an opposition party until late 1997, have alleged that other UNDP members have been detained in these private jails and that some have died from mistreatment.

Both the Cameroonian Red Cross and the NCHRF visited prisons only infrequently during the year. However, the International Committee of the Red Cross (ICRC) began to visit prisons in March 1999, pursuant to a December 1998 agreement with the Government under which the ICRC was to have free access to all detention centers and prisons, have private discussions with the inmates, and make repeated or unscheduled visits (see Section 4). Although the ICRC does not release its findings publicly, the Government generally complied with its agreement with the ICRC, which had not conducted prison visits in the country during the previous 7 years due to dissatisfaction with the limited access allowed by the Government. However, despite government assurances to the contrary, officials denied U.N. Special Rapporteur for Human Rights Rodley access in May 1999 to holding cells operated by the Government's special antigang unit (see Sections 1.a. and 1.b.).

d. Arbitrary Arrest, Detention, or Exile

The Penal Code requires an arrest warrant for any arrest, except when the criminal is caught in the act; however, security forces continued to arrest and detain citizens arbitrarily. The Penal Code also stipulates that detainees must be brought promptly before a magistrate; however, arbitrary, prolonged detention remained a serious problem, as security forces often failed to bring detainees promptly before a magistrate and sometimes held them incommunicado for months or even years.

Police legally may detain a person in custody in connection with a common crime for up to 24 hours, renewable three times, before bringing charges. However, the law provides for the right to a judicial review of the legality of detention only in the two Anglophone provinces. Elsewhere, the French legal tradition applies, precluding judicial authorities from acting on a case until the administrative authority that ordered the detention turns the case over to the prosecutor. After a magistrate has issued a warrant to bring the case to trial, he may hold the detainee in administrative or "pretrial detention" indefinitely, pending court action. Such detention often is prolonged, due to the understaffed and mismanaged court system. According

to U.N. Special Rapporteur Rodley, 80 percent of the prison population consists of untried prisoners. Rodley wrote that the length of pre-trial detention, often stretching as long as 7 years, makes it "inhuman in itself." In addition Rodley claimed that "pretrial detention is used not to attain its primary goal of upholding order and security and facilitating investigation, but rather, in the perception both of the public and of the forces of law and order, as a sanction." Furthermore, a 1990 law permits detention without charge by administrative authorities for renewable periods of 15 days, ostensibly in order to combat banditry and maintain public order. Persons taken into detention frequently are denied access to both legal counsel and family members. The law permits release on bail only in the Anglophone provinces, where the legal system includes features of British common law; however, bail is granted infrequently in those provinces.

There were reports that security forces, including the Operational Command, detained persons at specific sites where they tortured and beat detainees (see Sections 1.a. and 1.c.).

Government officials and security forces continued to use arbitrary arrest to harass and intimidate members of opposition parties and other critics of the Government.

On January 7, gendarmes in Limbe arrested and briefly detained 23 people who were looking at a flag hoisted by SCNC secessionists without pulling it down. Gendarmes retained the identity cards of 19, telling them to come back on January 10 to retrieve them. When they did so, the gendarmes photographed the individuals before releasing them with their identity cards.

On January 8 and 9, in Limbe, Southwest Province, the Government arrested a group of demonstrating members of the SCNC (see Section 2.b.). The Government released all of the detainees except Justice Frederick Ebong, Chief Ayumba, and James Sam Sabum, three of the group's leaders. The Government did not charge them with any crime, but it transferred them from Limbe to Buea and then to the underground Yaounde prison cells of the Secretariat of State for Defense, where they were awaiting trial on unspecified charges by the state security court at year's end. On May 9, the Buea High Court ruled against a motion for bail for the three SCNC leaders, stating the court lacked jurisdiction over the case.

On January 9, gendarmes of the Nkongsamba (Littoral Province) brigade arrested Sylvestre Tchakoutio, a political activist and member of the opposition Union of Cameroon Democratic Forces (UFDC), on unspecified charges. On January 12, three gendarmes searched his residence without a search warrant (see Section 1.f.). On January 18, during questioning by the brigade commander, Tchakoutio learned that an anonymous false report to the Government's senior divisional officer of Mungo Division claimed that Tchakoutio was hiring people to engage in operations to destabilize the Government. The gendarmes released Tchakoutio on January 30 when they found no evidence to support the accusations.

On January 27, security forces intervened in a student strike at the University of Douala (see Sections 1.c. and 2.b.). Several students, including one of the strike's leaders, Guy Simon Ngakam, were arrested and detained for 2 days.

The Government continued to harass and arrest a high-profile Douala political activist, Mboua Massok. On January 27, Douala police arrested Mboua Massok near the Douala University campus for his apparent support of the January 18 student strike (see Section 2.b.). The gendarmes released him without charge or trial on March 16. On April 11, members of the Douala gendarmerie again detained Massok for several hours regarding a human rights essay he published (see Section 2.a.).

On January 28, four gendarmes reportedly arrested and tortured customs inspector Vincent Nkengfua, who they suspected of kidnapping a child, and all the workers at Nkengfua's plantation in Mbanga, including a child (see Section 1.c.). In September Nkengfua filed a lawsuit against the gendarmes with the Mbanga High Court for abuse of power, arbitrary arrest and seizure of property, false evidence, calumny, and torture.

In March the Prefet (Senior Divisional Officer) of Bangangte, Nd Division, West Province, ordered the arrest of Catherine Yami and Roger Tankeu, respectively the SDF president for the Basssamba electoral district, and the SDF West provincial coordinator (see Section 2.b.). The two leaders had tried to prevent gendarmes from dispersing a meeting in the district.

On March 20, security forces raided the palace of Fon Omer Tawun, the traditional ruler of Chup, in Nkambe, Northwest Province, under the suspicion that he was storing illegal weapons (see Section 1.f.). Although security forces found no weapons or ammunitions, they arrested Fon Tawun, Moses Khan (treasurer of division), and Francis Adamu (second deputy town mayor). Security forces detained the three for 2 days in the town jail, then transferred them to the gendarmerie legion in Bamenda, where they questioned and released them.

On April 20, government security forces reportedly attacked the parish of Notre Dame de Sept Douleurs in Douala during a Mass. Security forces reportedly arrested some parishioners and beat others (see Sections 1.c. and 2.c.).

On April 21 and 22, security forces arrested and detained briefly hundreds of SCNC supporters and sympathizers in the towns of Kumba and Muyuka, Southwest Province. The arrests, ordered by the Southwest Province governor, were based on allegations that the SCNC was considering overthrowing the Province's officials.

On May 10, plainclothes policeman in Mamfe, Manyu Division, Southwest Province, arrested without warrants Mathias Takunchung Ebai, Daniel Akwo, John Enow, Tambong, and four other members of the SDF. The police transferred them to the gendarmerie legion in Buea, where gendarmes questioned them for 3 days concerning their support for the SCNC before releasing them on May 13.

On May 23, gendarmes at the NDOP brigade in the Northwest Province arrested and detained Mathew Titiahonjo, Nathaniel Ntam, John Nivame, and several others, and beat and tortured Titiahonjo and Nivame (see Section 1.c.). On September 14, Titiahonjo died in prison reportedly from torture; the Prime Minister released the remaining nine on October 31.

On May 23, police and gendarmes forcibly dispersed a demonstration by students of the University of Yaounde, in which students protested the poor road conditions that killed 14 persons in a May 17 bus accident (see Section 2.b.). Police arrested approximately 50 students and severely beat several of them (see Section 1.c.). The students were released on May 25.

On the night of June 7, a police patrol from the Yaounde 8 police district arrested and beat Beatrice Elouga for failing to carry her national identity card (see Sections 1.c. and 2.d.).

On August 24, gendarmes released Bassy Okon Edet, a Nigerian fisherman, after a 7-day incarceration. Edet apparently was fishing in the Atlantic Ocean near the disputed Bakassi Peninsula when gendarmes in the region picked him up, permanently seizing his fishing boat, fishing nets, and clothes. Edet claims that the gendarmes blindfolded him, did not feed him, and forced him to do labor during his incarceration (see Section 6.c.); the fisherman claims that other Nigerians remain in the same detention camp.

In November the Prefet of Dschang arrested two union leaders allegedly because of an unsigned labor agreement (see Section 6.a.); ten others also were questioned. All 12 were released the next day.

On November 13, security forces forcibly dispersed a march by opposition SDF parliamentarians in Yaounde (see Sections 2.b. and 3). Security forces arrested several marchers, seized journalists' cameras (see Section 2.a.), and beat one journalist (see Section 1.c.).

Security forces harassed and occasionally detained journalists and beat demonstrators and members of human rights NGO's (see Sections 2.a. and 2.b.). For example, in late June, police commissioner Jean-Joel Ondo, from the central provincial judicial police, detained for 2 hours two journalists of the Douala-based French-language tri-weekly newspaper, La Nouvelle Expression. According to the journalists, the commissioner arrested them for chatting with two young women who were close to the commissioner. The commissioner also ordered the two women brought to the police station, where police beat one of them severely (see Section 1.c.).

Many of the public officials arrested in 1999 in the Government's high-profile but short-lived corruption crack-down still were awaiting trial at year's end. In September and October 1999, the Government arrested these officials, including former Minister of Posts and Telecommunications Monchipou Seidou, Ministry Budget Director Guillaume Yetna Hiobi, and Ministry Director of Production Philip Tarkang, on charges of corruption or embezzlement.

On March 3, political activist Sanda Oumarou was released from jail; he had been held without formal charges or judicial proceedings since July 1999.

In 1997 government security forces detained 13 former senior military officers of Equatorial Guinea who had been granted refugee status by the UNHCR and had lived in the country for 4 years. In 1998 these 13 officers, who were affiliated with an Equato-Guinean opposition party and included Alfonso Mba Nsogo, former head of the Equato-Guinean military, contested the Government's assertion that it had arrested them for their own protection. In August 10 of the 13 refugees from Equatorial Guinea detained at a military base since 1998 left for refugee resettlement in another country. Three refugees disappeared before they could depart (see Section 1.b.); however, they were believed to have returned voluntarily to Equatorial Guinea or to have established unofficial residence in the country.

Nana Koulagne, a former member of the National Assembly and UNDP activist, has remained in prison in Garoua since May 1997, when members of the security forces attacked and arrested him and other activists of the then-opposition UNDP while he was campaigning for election in the North Province. On July 17, after more than 3 years in detention, the Garoua Military Tribunal formally charged Koulagne with complicity in assassination, group looting, arson, and desecrating cadavers. On August 31, the Garoua Military Tribunal sentenced Koulagne to 3 years in prison, counted as time served in detention. He was released on August 31. No members of the Lamido's traditional guard, who also were involved in the incident, were charged with a crime.

The Government continues to incarcerate illegally Nda Yinzi Ousmanou, Pierre Mbock, Jules Zoa, Ambadiang Adebada, and Michel Kamga. The Government arrested the five on April 30, 1996, on charges of aggravated theft, illegal possession of firearms, and forgery. Despite an October 1997 Douala court ruling of innocence and a court order to release the men, the Government refuses to let them out of prison. Nda Yinzi Ousmanou died on November 21, 1998, and the other four remain incarcerated.

Four Anglophones, Abel Achah Apong, Crispus Kennebie, John Kudi, and Zaque Njenta, have been detained in the Yaounde Central Prison since 1995, and a fifth, Etchu Wilson Arrey, since 1997. Each was incarcerated after signing or displaying a petition for a referendum on independence for the Anglophone provinces. At year's end, none of these detainees had been brought before a judge or charged with a crime.

Police and gendarmes often arrest persons on spurious charges on Fridays at mid-day or in the afternoon (see Section 1.c.). While the law provides for a judicial review of an arrest within 24 hours, the courts do not convene sessions on the weekend, so the detainee remains in prison at least until Monday. Police and gendarmes commonly accept bribes to make such "Friday arrests" from persons who have private grievances against the person arrested. There are no known cases of any policemen or gendarmes being sanctioned or punished for this practice.

Government intimidation extends beyond the police stations and holding cells. In efforts to combat highwaymen ("coupeurs de route"), Colonel Pom and his special antigang gendarmerie unit (see Section 1.a.) use informants to identify and accuse persons of taking part in highway robbery. Standards of proof for such accusations are nonexistent. Accusations occasionally have been used to pursue private grievances, and informants repeatedly have extorted money from innocent persons by threatening to accuse them of being bandits. The Douala Operational Command reportedly uses informants in a similar fashion. These informants often are former criminals or prison guards, and are used to target criminals who are then summarily executed (see Section 1.a.).

The Government does not use forced exile; however, some human rights monitors or political opponents who considered themselves threatened by the Government have left the country voluntarily and declared themselves to be in political exile.

On April 11, the traditional rulers of Ekondo-Titi, Southwest Province, acting under the authority of the Balondo Development Association (BACUDA), ordered the expulsion of Iyassa Anou, Joseph Regeant, Johnson Mambo Naseri, Mathew Ajong Awor, Christian Buma, Francisca Nyando, and James Okenye, for allegedly bewitching to death a resident of the town of Lobe; however, the order to expel the seven was not implemented by year's end. BACUDA was investigating the charges of alleged witchcraft at year's end.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary; however, the judiciary remains highly subject to political influence and corruption. The court system remains technically part of the executive branch, subordinate to the Ministry of Justice. The Constitution specifies that the President is the guarantor of the legal system's independence. He also appoints judges with the advice of the Supreme Council of the Magistrature. However, during the 1990's, elements of the judiciary began to show some modest signs of growing independence. Since 1997 the courts repeatedly have used powers given them under the 1996 press law to order the Ministry of Territorial Administration to desist from seizing print runs of newspapers critical of the Government. In 1999 an appeals court overturned a criminal libel conviction of journalists on the grounds that it violated 1990 legislation providing for freedom of the press (see Section 2.a.); however, some politically sensitive cases never are heard.

The court system includes the Supreme Court, a court of appeals in each of the 10 provinces, and courts of first instance in each of the country's 58 divisions.

Military tribunals may exercise jurisdiction over civilians not only when the President declares martial law, but also in cases involving civil unrest or organized armed violence. A law on the organization of the judiciary promulgated in 1998 also transferred to military tribunals jurisdiction over gang crimes, grand banditry, and highway robbery. The Government apparently interprets these guidelines quite broadly and sometimes uses military courts to try matters concerning dissident groups and political opponents.

The legal system includes both national law and customary law, and many cases can be tried using either. Customary law is based upon the traditions of the ethnic group predominant in the region and is adjudicated by traditional authorities of that group. Accordingly, particular points of customary law differ depending upon the region and the ethnic group where a case is being tried. In some areas, traditional courts reportedly have tried persons accused of some offenses, such as practicing witchcraft, by subjecting them to an ordeal, such as drinking poison (see Section 2.c.); however, there were no known incidents during the year. Customary courts may exercise jurisdiction only with the consent of both parties to a case; either party has the right to have any case heard by a national rather than a customary court, and customary law is supposed to be valid only when it is not "repugnant to natural justice, equity, and good conscience." However, many citizens in rural areas remain unaware of their rights under civil law and have been taught since birth that customary laws form the rules by which they must abide. Consequently, traditional courts remain important in rural areas and serve as an alternative for settling disputes. Their authority varies by region and ethnic group, but they often are the arbiters of property and domestic disputes and may serve a probate function as well. Most traditional courts permit appeal of their decisions to traditional authorities of higher rank.

Corruption and inefficiency in the courts remain serious problems. Justice frequently is delayed or denied before reaching the trial stage (see Section 1.d.). Political bias often brings trials to a halt or results in an extremely long process, punctuated by extended court recesses. Powerful political or business interests appear to enjoy virtual immunity from prosecution; some politically sensitive cases are settled with a payoff and thus never are heard. Private journalists, political opponents, and critics of the Government often are charged or held and sometimes jailed under libel statutes considered by observers as unduly restrictive of press freedom (see Section 2.a.). Prisoners may be detained indefinitely during pretrial proceedings.

The legal structure is influenced strongly by the French legal system, although in the Anglophone provinces certain aspects of the Anglo-Saxon tradition apply. The Constitution provides for a fair public hearing in which the defendant is presumed innocent. Because appointed attorneys receive little compensation, the quality of legal representation for indigent persons is

often poor. The Bar Association and some voluntary organizations, such as the Cameroonian Association of Female Jurists, offer free assistance in some cases. Trials are normally public, except in cases with political overtones judged disruptive of social peace.

The Government holds a number of political prisoners; however, as in previous years, there were no reliable estimates of the number of political prisoners held at the end of the year.

In April 1999, the Government began the trial of the 65 surviving Anglophones who had been detained, some for more than 2 years, on suspicion of participating in armed attacks against government installations in the Northwest Province in March 1997. This judicial process did not follow either international or national legal norms. In October 1999, the military tribunal convicted 37 of the accused, sentencing 3 to life imprisonment and 34 to terms ranging from 1 to 20 years in prison. The tribunal acquitted 28 defendants, some of whom had been detained for 30 months, during which at least 8 of the persons originally arrested in this case died in custody, some of them as a result of torture inflicted on many of these detainees (see Section 1.c.). At year's end, 19 of the Anglophones convicted remained in prison in Yaounde; the other 18 were released following the completion of their sentences. On November 6, the Government released four Anglophones, Abel Achah Apong, Crispus Kennebie, John Kudi, and Zaque Njenta, who had been in the Yaounde Central Prison since 1995, and a fifth, Etchu Wilson Arrey, since 1997. Each was incarcerated after signing or displaying a petition for a referendum on independence for the Anglophone provinces. The tribunal declared itself incompetent to rule on two accused illegal Ghanaian immigrants, who remain incarcerated. International human rights NGO's, including Amnesty International, criticized the trial as unfair and protested the sentences.

Titus Edzoa, former Minister of Health and longtime presidential aide, who had declared himself a candidate to oppose incumbent President Biya in the 1997 election, remains incarcerated, together with Michel Atangana, his campaign manager. They were sentenced in 1997 to 15 years' imprisonment on embezzlement and corruption charges, for which Edzoa was arrested shortly after declaring his presidential candidacy (see Section 3). In 1999 the Yaounde Court of Appeals confirmed their convictions and their 15-year prison terms. At year's end, Edzoa reportedly still was held in confinement at the maximum security gendarmerie headquarters, in cramped quarters with very limited access to visitors.

f. Arbitrary Interference With Privacy, Family, Home, or Correspondence

The preamble of the Constitution provides for the inviolability of the home, for protection against search except by virtue of law, and for the privacy of all correspondence; however, these rights are subject to the "higher interests of the State," and there were a number of credible reports that police and gendarmes harassed citizens, conducted searches without warrants, and opened or seized mail. The Government continued to keep some opposition activists and dissidents under surveillance.

The law permits a police officer to enter a private home during daylight hours without a warrant if he is pursuing an inquiry and has reason to suspect that a crime has been committed. The officer must have a warrant to make such a search after dark. However, a police officer may enter a private home at any time in pursuit of a criminal observed committing a crime.

An administrative authority may authorize police to conduct neighborhood sweeps in search of suspected criminals or stolen or illegal goods without individual warrants. Such sweeps are conducted frequently. During the year, as in 1999, sweeps involving forced entry into homes occurred in Yaounde, Douala, Ekondo Titi, Maroua, and Kousser. An increase in crime during the year led to a dramatic increase in the number of such sweeps, called "kali-kali" or "raffles," in Douala and Yaounde. Government security forces also conducted neighborhood sweeps in Buea and Limbe. Typically, security forces seal off a neighborhood, systematically search homes, arrest persons arbitrarily, and seize suspicious or illegal articles. There were credible reports that security forces used these sweeps as a pretext to loot homes and arbitrarily arrest persons for minor offenses, such as not possessing identity cards (see Sections 1.d. and 2.d.). In a June letter to government officials, the Catholic Archbishop of Douala stated that security forces arrested some parents during these operations, forcing them to leave babies or sick children alone at home.

In the past, Government administrative officials have used the armed forces to conduct tax raids on civilian communities; however, the Government reportedly did not conduct any such raids this year. In the past, the Government publicly has blamed opposition parties for its inability to collect internal revenues, but it did not repeat such accusations this year.

On January 12, three gendarmes of the Nkongsamba (Littoral Province) brigade searched the residence of Sylvestre Tchakoutio, a political activist, for guns without a search warrant. Tchakoutio had been arrested on January 9 (see Section 1.d.).

On March 20, security forces, under instructions from the senior divisional officer, raided the palace of Fon Omer Tawun, the traditional ruler of Chup, in Nkambe, Northwest Province, under the suspicion that he was storing illegal weapons. Eyewitness accounts reported that security forces violated sacred places in the palace during the search, including the "kwifon," which houses the traditional secret society of the village. Though security forces found no weapons or ammunitions, they arrested Fon Tawun, Moses Khan (treasurer of division), and Francis Adamu (second deputy town mayor) (see Section 1.d.).

On May 7, a police officer by the name of Bahiga shot and killed Laurent Abbe in Yaounde during an allegedly illegal search of Abbe's friend's residence (see Sections 1.a. and 1.d.).

In June in Ndop, Northwest Province, a gendarme who had lost his gun enlisted the support of his brigade to search for the weapon without a warrant. Press reports indicated the gendarmes ransacked homes and business, assaulting citizens in the process (see Section 1.c.).

Following the November 1999 destruction of the Kobba-Bonaberi neighborhood in Douala, some residents returned to the neighborhood in May and began to rebuild their homes. In June the authorities warned the returning residents to leave, or the Government would destroy their homes again. A few residents continue to maintain that they have valid permits to build homes.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of expression and of the press; however, the Government continued to impose limits on these rights. The Penal Code's libel laws specify that defamation, abuse, contempt and dissemination of false news are offenses punishable by prison terms and heavy fines. These statutes sometimes are invoked by the Government to silence criticism of the Government and government officials.

While approximately 60 private newspapers were published, only about 20 were published on a regular basis. Most continued to be highly critical of President Biya, and his Government, and reported on controversial issues, including corruption, human rights abuses, and economic policies. Since the Government's 1994-95 crackdown on the private press, most private journalists have begun to practice a higher degree of fact checking and thus have increased journalistic accuracy. Journalists continue to be critical of the Government; however, some journalists practiced self-censorship.

In 1996 the Government repealed the law that had authorized the Government both to censor private publications and extrajudicially to seize publications "dangerous to public order," or suspend newspapers' publication licenses. Previously, the Government often had taken these extrajudicial actions to inflict economic damage on newspapers critical of the Government and had done so often during election years.

Formal censorship ceased in 1997. Since 1998, the Government largely has ceased to interfere with private newspaper distribution or seize print runs of private newspapers; however, on May 10, the Prefet (Senior Divisional Officer) of Kumba, Meme Division, Southwest Province, signed an order to ban one issue of the Bamenda-based English-language publication

Today in his district. The Prefet took the measure following an increase in the secessionist activities in the region, and increased reporting of such activities.

Security forces continued frequently to restrict press freedom by harassing or abusing private print media journalists.

The Government continued to harass and arrest the high-profile Douala political activist, Mboua Massok (see Section 2.b.). On April 11, members of the Douala gendarmerie detained Massok for several hours regarding a human rights essay he published (see Section 1.d.).

On April 15 and 16, a gendarme patrol detained Alex Lembe, a journalist with Afrik Netpress and formerly with Aurore Plus, a Douala-based, French-language weekly newspaper. The patrol had stopped Lembe and demanded his identity card. When the patrol commander realized he was a journalist, he insulted Lembe, beat him, and held him overnight (see Section 1.c.).

In late June, police commissioner Jean-Joel Ondo, from the central provincial judicial police, detained for 2 hours two journalists of the Douala-based French-language tri-weekly newspaper, La Nouvelle Expression (see Section 1.d.). According to the journalists, the commissioner arrested them for chatting with two young women who were close to the commissioner.

On September 15, members of the Operational Command unit arrested three employees of Le Messenger in Douala and detained them at the Mboppi gendarmerie camp (see Section 1.d.). They were released the following day without charges.

On November 13, security forces forcibly dispersed a march by opposition SDF parliamentarians in Yaounde (see Sections 2.b. and 3). Security forces arrested several, seized journalists' cameras, and beat one journalist (see Sections 1.c. and 1.d.).

From March through May, the Government harassed some newspapers through fiscal means. On April 30, the Center Provincial Taxes Department sealed the office of the Yaounde-based French-language newspaper, L'Anecdote, demanding that the paper pay tax arrears of \$280,000 (200 million CFA). According to one newspaper, the move was prompted by an article the paper had published in September 1999, accusing the wife of a senior official of the Ministry of Finance of involvement in the embezzlement scandal at the Ministry of Posts and Telecommunications, for which the Government later arrested her. On May 19, the Government sealed the offices of the Douala-based French-language publication Le Front Independent for one day due to non-payment of taxes estimated at \$21,000 (15 million CFA) by the Littoral Province Office of Taxation. In early June, the Government again sealed the paper's offices, claiming that arrears had jumped to \$57,000 (40 million CFA). The newspaper and the taxation office reportedly were negotiating a deal at year's end.

Since 1996 the Government frequently has prosecuted its critics in the print media under the criminal libel laws. These laws authorized the Government, at its discretion and at the request of the plaintiff, to criminalize a civil libel suit, or to initiate a criminal libel suit in cases of alleged libel against the President and other high government officials. There continued to be allegations that government ministers and other high officials offered to drop criminal libel suits in exchange for cash payments from newspapers or journalists. During the year, the Government arrested, prosecuted, or convicted four members of the press on criminal libel charges. However, this practice declined in frequency and severity from previous years, apparently due in part to greater fact checking on the part of journalists.

On April 3, the Bafoussam High Sentence Court sentenced Michel Eclador Pekoua, publisher of the Bafoussam-based French-language weekly newspaper Ouest Echoes to 6 months in jail and damages of \$1150 (800,000 CFA) for libel in a suit brought by Blanche Penda Ekoka, an employee of the national hydrocarbon company (SNH). On July 14, 1999, Ouest Echoes published a leaflet on behalf of a group of SNH employees, denouncing unjust working conditions and blaming the SNH General Manager and Penda Ekoka, said to be his girlfriend. In August 1999, Penda Ekoka's lawyer and the instructing magistrate demanded that Pekoua disclose the names of those who had written the leaflet. Pekoua refused, and the Government charged and convicted Pekoua with defamation, abuse (insulting expressions), and false reporting. On May 2, after 30 days of detention in the Bafoussam Penitentiary, the judge granted provisional release to Pekoua, pending an appeal.

On April 12, security forces arrested Severin Tchounkeu, publisher of the Douala-based French-language tri-weekly *La Nouvelle Expression*, and newspaper journalists Edmond Kamguia and Alain Bengono, and detained them in the cells of the Secretariat of State for Defense for 3 days. The Government had filed a complaint against the paper for its March 31 "April Fool's" article that said that bandits attacked the gendarmerie station in Yaounde, seizing arms, and holding the gendarmes hostage. On April 14, the Government charged Tchounkeu and Bengono with "dissemination of false news" and released them pending trial. The Government did not file charges against Edmond Kamguia.

On July 19, a Douala court sentenced Daniel Atangana and Thierry Mbouza, two journalists of the Douala-based French-language biweekly *Dikalo*, to 6 months in prison. The publisher, Celestin Biake Difana, received a suspended 6-month prison term. The Douala court had convicted the journalists of defamation, false reporting, and the dissemination of false news charges, based upon *Dikalo*'s 1998 publication of a memorandum written by members of the National Union of Road Transporters (SNTR), denouncing the poor management of SNTR President Pierre Sime. Sime responded with a libel suit. The case was suspended and *Dikalo* was appealing previous judgments against the newspaper at year's end.

No new developments were reported in the following 1999 criminal libel cases: The February 1999 criminal libel conviction of SDF Party Chairman Fru Ndi and journalists Severin Tchounkeu and Henriette Ekwe; the June 1999 sentencing of Severin Tchounkeu and Souley Onohiolo for libel and dissemination of false news; and the June 1999 sentencing of Anselme Mballa for criminal libel.

The Government publishes an official newspaper, *The Cameroon Tribune*. This paper occasionally implies criticism of the Government; however, its reporters do not report extensively on activities or political parties critical of the Government, overtly criticize the ruling party, or portray government programs in an unfavorable light.

Despite the large number of newspapers in the country, the influence of the print media on the average person is minimal. Circulation is low, distribution is problematic outside of Yaounde and Douala, and prices are high. Print media reaches only a tiny percentage of the population, most notably the urban elite. *The Cameroon Tribune* has a print run of only about 5,000; the four most important opposition papers *Dikalo*, *Le Messenger*, *Mutations*, and *Nouvelle Expression*, have print runs of between 5,000 and 10,000 each.

Radio remains the most important medium for reaching most citizens. There are approximately 2 million radios in the country. Television is less pervasive but is still more influential than the print media. There are an estimated 300,000 to 400,000 television sets in the country, and viewership is high, since many persons watch television in extended family groups or together in commercial establishments.

On April 3, the Government issued a decree that implements the 1990 law liberalizing the broadcast media and sets out the conditions and procedures for establishing independent radio and television stations. Rural radio stations must submit an application to broadcast but are exempt from fees. Potential commercial radio and television broadcasters must submit a licensing application and pay a fee when the application is approved. The annual licensing fees stipulated in the decree potentially are prohibitive: \$15,600 (10 million CFA) for radio broadcasters, \$73,000 (50 million CFA) for local television stations, and \$146,000 (100 million CFA) for national television stations. Nonetheless, the Ministry of Communication received more than a hundred applications from potential broadcasters.

Five Yaounde-based private radio stations that previously had been broadcasting illegally submitted applications and paid an interim fee of \$727 (500,000 CFA). The Government authorized them to continue broadcasting, pending final approval of their application and subsequent payment of the full licensing fee. Of these stations, two are religious: The Pentecostal "Radio Bonne Nouvelle" and "Radio Reine," which is managed by a Catholic priest, though not officially sponsored by the Catholic Church. Two others are affiliated with private non-accredited academic institutions: NDI Samba University's "Radio Lumiere" and the Siantou University's "Radio Siantou." The fifth station is "Radio Venus," which plays only music. A small number of radio stations that had been broadcasting illegally including "Radio Soleil," which broadcasts from the Muslim quarter of Yaounde, did not apply for licenses, claiming the fees are too high. The Government has not yet acted against these operators.

The state-owned Cameroon Radio and Television (CRTV) broadcasts on both television and radio and is currently the only officially-recognized and fully-licensed broadcaster in the country. The Government levies taxes on all registered taxpayers to finance CRTV programming, giving it a distinct advantage over newly-competing independent broadcasters.

There are several low-power, rural community radio stations mostly funded by foreign countries, with extremely limited range, which broadcast educational programs to small audiences but are not allowed to discuss politics. In addition this year's decree allows for broadcasting of foreign news services but requires them to form a partnership with a national station. Radio France International and the British Broadcasting Corporation (BBC) have announced their intention to work with CRTV and hope to begin broadcasting in 2001.

During the year, the Government continued to allow the reception of international cable and satellite television broadcasts (see Section 1.f.).

Like the Cameroon Tribune, CRTV provides broad reporting of CPDM functions, while giving relatively little attention to the political opposition. CRTV management, which in the past repeatedly has instructed CRTV staff to ensure the Government views prevail at all times in CRTV broadcasts, continued during the year to punish CRTV journalists who criticized government policy. In late May, CRTV censored a program concerning the Douala Operational Command, the security unit instituted to fight Douala city crime. CRTV had started broadcasting the program, including portions that reported public allegations of arbitrary arrests, torture, and extortion. The Government censored the second part of the program before it was broadcast, allegedly because the first part had caused some embarrassment to the military hierarchy and the Government. In November CRTV suspended two journalists for broadcasting a program that criticized members of the ruling party for their lifestyles.

CRTV television and radio programming include a weekly program, Expression Directe, which ostensibly fulfills the Government's legal obligation to provide an opportunity for all political parties represented in the National Assembly to present their views. However, CRTV continued to restrict the opposition SDF party's freedom of expression through that program, occasionally censoring and significantly shortening proposed SDF programming. For example, on March 9 and 22, the General Manager of CRTV censored SDF submissions, arguing that the content of the programs violated provisions of the law. Both CRTV and the SDF appealed to the National Council on Communication, the regulatory organ for communication, for support. There was no report of a ruling or decision by the National Council on Communication by year's end.

High-tech communications, including the Internet, e-mail, and satellite phones, are not available or utilized widely; however, a few cybercafes provide occasional Internet or e-mail access in some urban areas. There are at least six domestic Internet service providers, one of which has been in operation for 3 years. Some are privately owned. The Government has not attempted to restrict or monitor these forms of communications.

Although there are no legal restrictions on academic freedom, state security informants operate on university campuses. Many professors believe that adherence to opposition political parties can affect adversely their professional opportunities and advancement. Free political discussion at the University of Yaounde is dampened by the presence of armed government security forces. Security forces subjected Dr. Charley Mejame Ejede, a professor of philosophy at the University of Douala who is also national secretary of the Liberal Democratic Alliance political party, to prolonged harassment, presumably due to his political activism in previous years; however, there were no reports of such harassment during the year. Security forces forcibly dispersed some student protests during the year (see Section 2.b.).

b. Freedom of Peaceful Assembly and Association

The law provides for freedom of assembly; however, the Government restricts this right in practice. The law requires organizers of public meetings, demonstrations, or processions to notify government officials in advance; it does not require prior government approval of public assemblies, and does not authorize the Government to suppress public assemblies that it has not approved in advance. However, for many years government officials routinely have asserted that this provision of the Penal Code implicitly authorizes the Government to grant or deny permission to public assemblies, often have not

granted permits to assemblies organized by persons or groups critical of the Government, and repeatedly have used force to suppress public assemblies whose organizers submitted advance notice as required by law but for which government authorities did not issue permits. The Government continued to allow opposition political parties greater freedom of assembly.

In early January, two administrative orders banned all political activities in Buea and Limbe, Fako Division, Southwest Province, following a series of secessionist activities in December 1999. On January 8 and 9, in Limbe, Southwest Province, the Government arrested several demonstrating members of the SCNC, including the rally's leader Justice Frederick Ebong and two of his associates (see Section 1.d.). Approximately 25 SCNC members marched and raised the flag of the "Federal Republic of the Southern Cameroons." The march followed the December 1999 announcement by the SCNC that proclaimed the independence of two southern provinces.

On January 27, security forces intervened in a student strike at the University of Douala. The students went on strike on January 18 to demand changes at the university. The police used water cannons and nightsticks on the students, and beat several students severely (see Section 1.c.). Police also arrested several students and detained them for 2 days (see Section 1.d.). Political activist Mboua Massok also was arrested near the campus for his apparent support of the strike (see Section 1.d.).

In early March, the Prefet (Senior Divisional Officer) of Bangangte, Nd Division, West Province, ordered the arrest of Catherine Yami and Roger Tankeu, respectively the SDF president for the Basssamba electoral district, and the SDF West provincial coordinator (see Section 1.d.). The two leaders had tried to prevent gendarmes from dispersing a duly declared meeting in the district.

On March 30, Pierre Minlo, the Delegate General for National Security (DGSN) in Yaounde, banned three peaceful marches by the Union of Cameroon Democratic Forces (UFDC), an opposition party. The UFDC wanted to protest against growing crime in Yaounde and had declared to the sub-divisional officers (sous-prefets) in the three affected neighborhoods their intent to march. In his communique, the DGSN stated that the UFDC had no right to march because it was not represented at the National Assembly, a requirement which does not exist in any of the laws regulating public meetings and processions.

On March 30, the Government banned a press conference by five SDF mayors in Douala suburbs, and police officers from the Douala First Police District barred entry to journalists and participants. According to the commissioner leading the squad, authorities banned the conference because they feared it might disturb public order; the commissioner made this deduction because the mayors allegedly refused to disclose what they planned to say at the press conference.

On May 23, police and gendarmes forcibly dispersed a demonstration by students of the University of Yaounde, in which students protested the poor road conditions that killed 14 persons in a May 17 bus accident. Police arrested approximately 50 students and severely beat several of them (see Sections 1.c. and 1.d.).

On November 13, security forces forcibly dispersed a march by opposition SDF parliamentarians in Yaounde. The Governor of the Center Province had banned the march on November 7. The parliamentarians marched to highlight the need for an independent electoral commission (see Section 3). Security forces arrested several marchers, seized journalists' cameras and beat one journalist (see Sections 1.c. and 2.a.). On November 24 in Yaounde, security forces dispersed a similar protest by several dozen SDF parliamentarians; the SDF did not seek Government approval for the march as required under the law. No arrests were made.

The law provides for freedom of association, and the Government generally respected this right in practice during the year, although there were some exceptions. The conditions for government recognition of a political party, a prerequisite for many political activities, were not onerous. Over 150 political parties operated legally, together with a large and growing number of civic associations. However, in past years, the Government has been suspected widely of fomenting splits in the main opposition party, the SDF. Some members of the SCNC claim that the Government encourages splits within the organization as a way of undercutting the group's secessionist message.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government generally respects this right in practice.

Relations between the State and religious groups are governed chiefly by the Law on Religious Congregations. Religious groups must be approved and registered with the Ministry of Territorial Administration in order to function legally; there were no reports that the Government refused to register any group. It is illegal for a religious group to operate without official recognition, but the law prescribes no specific penalties for doing so. Although official recognition confers no general tax benefits, it allows religious groups to receive real estate as gifts and legacies for the conduct of their activities. In order to register, a religious denomination must fulfill the legal requirement to qualify as a religious congregation. This definition includes "any group of natural persons or corporate bodies whose vocation is divine worship" or "any group of persons living in community in accordance with a religious doctrine." The denomination then submits a file to the Minister of Territorial Administration. The file must include a request for authorization, a copy of the charter of the group that describes planned activities, and the names and respective functions of the officials of the group. The Minister studies the file and sends it to the presidency with a recommendation for a positive or negative decision. The President generally follows the recommendation of the Minister, and authorization is granted by a presidential decree. The approval process usually takes several years, due primarily to administrative slowness. The only religious groups known to be registered are Christian and Muslim groups and the Baha'i Faith, but other groups may be registered. The Ministry has not disclosed the number of registered denominations, but the number of registered religious groups is estimated to be in the dozens. The Government does not register traditional religious groups, on the grounds that the practice of traditional religions is not public but rather private to members of a particular ethnic or kinship group, or to the residents of a particular locality.

The sites and personnel of religious institutions were not exempt from the widespread human rights abuses committed by government security forces. On April 20, government security forces reportedly attacked the parish of Notre Dame de Sept Douleurs in Douala during a Mass. Security forces reportedly arrested some parishioners and beat others (see Sections 1.c. and 1.d.). On April 24, the Ministry of National Education announced the suspension of two teachers of the Bertoua technical high school. The two teachers were accused of having "enticed" some of their students into their religious group.

In January 1998, an undisclosed number of personnel of the 21st Navy Battalion, allegedly broke into a church in Douala, beat and stabbed the priest and several youths, raped young women, and stole funds. On February 22, the Douala Military Tribunal convicted the personnel of breach of orders causing bodily harm and destruction. The tribunal sentenced them to 1-year imprisonment with no possibility of remission.

Disputes within registered religious groups about control of places of worship, schools, real estate, or financial assets are resolved in the first instance by the executive branch rather than by the judiciary.

Government officials criticized and questioned criticisms of the Government by religious institutions and leaders, but there were no reports that Government officials used force to suppress such criticism.

The practice of witchcraft is a criminal offense under the national penal code; however, persons generally are prosecuted for this offense only in conjunction with some other offense, such as murder. Witchcraft traditionally has been a common explanation for diseases of which the causes were unknown.

There was a media report that in September 1999 traditional authorities in Lobe, in N'dian Division of the Southwest Province, banished from the locality six persons, including one blind man, accused of having killed a woman by practicing witchcraft. According to the report, a traditional court tried the accused by requiring them to drink poison that traditionally is believed to kill only those who lie to the court, convicted the accused when they refused to drink, ordered them to pay in-kind, blood-price damages, and expelled them from the locality when they refused to pay. The accused reportedly filed a protest with the divisional officer of the central Government; however, initial investigations could not confirm this report.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The law does not restrict freedom of movement within the country; however, in practice government security forces routinely impede domestic travel. Police frequently stop travelers to check identification documents, vehicle registrations, and tax receipts as security and immigration control measures. Police commonly demand bribes from citizens whom they stop at roadblocks or at other points.

Roadblocks and checkpoints manned by security forces have proliferated in cities and most highways and make road travel both time-consuming and costly, since extortion of small bribes is commonplace at these checkpoints. In past years, violent and sometimes fatal confrontations have occurred repeatedly at such checkpoints when travelers would not or could not pay the bribes demanded by the security forces.

There were credible reports that police arrested and beat individuals who failed to carry their identification cards (see Sections 1.c., 1.d., and 1.f.).

The law contains provisions for granting refugee status in accordance with the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. The Government cooperates with the office of the U.N. High Commissioner for Refugees (UNHCR) and other humanitarian organizations in assisting refugees. The country has long been a safe haven for displaced persons and refugees from nearby countries. The Government provides first asylum to persons who arrive at the border without documentation but who can show a valid claim to refugee status. The UNHCR estimated that there were about 47,000 refugees in the country for whom Cameroon was a country of first asylum. However, some NGO's claim that the number is as high as 60,000. The majority of these persons are Chadians, whose total number was estimated to be more than 41,000. In May 1999, the UNHCR began a repatriation program for Chadian refugees. The remaining refugees principally were from Rwanda, Burundi, and the Democratic Republic of the Congo, with small numbers from Liberia, Sudan, and Ethiopia. The Government accepts for resettlement refugees who are granted refugee status by the UNHCR.

In 1997 government security forces detained 13 former senior military officers of Equatorial Guinea who had been granted refugee status by the UNHCR and had lived in the country for 4 years (see Section 1.d.). In August 10 of the 13 refugees from Equatorial Guinea detained at a military base since 1998 left for refugee resettlement in another country. Three refugees disappeared before they could depart (see Section 1.b.); however, they were believed to have returned voluntarily to Equatorial Guinea or to have established unofficial residence in the country.

Some illegal immigrants have been subjected to harsh treatment and imprisonment. In August Bassy Okon Edet, a Nigerian fisherman released after 7 days of incarceration by gendarmes (see Section 1.d.), claimed that security forces continue to hold other Nigerians for fishing in waters close to the disputed Bakassi Peninsula. Communities of Nigerians and Chadians often have been the targets of police and gendarme harassment. During raids, members of the security forces often extort money from those who do not have regular residence permits or those who do not have valid receipts for store merchandise (see Section 5).

There were no confirmed reports of the forced return of persons to a country where they feared persecution. Although the Government occasionally returns illegal immigrants, there were no reports of forced repatriation of recognized refugees.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides that citizens have the right to change their government, but dominance of the political process by the President and his party limits the ability of citizens to exercise this right. President Paul Biya has controlled the Government since 1982 and the ruling party since 1985. The 1992 and 1997 presidential elections and the 1997 legislative contests were criticized widely and viewed as fraudulent by international and domestic observers. In these elections, which were administered by the Ministry of Territorial Administration, members of largely pro-opposition ethnic groups and inhabitants of largely pro-opposition localities effectively were prevented from registering or voting, registration and vote counting procedures were not transparent, a public announcement of results was delayed, and the number of votes cast in some progovernment areas exceeded the adult population.

Elections are held by balloting that officially is described as secret but may permit voters to leave the polling place with evidence of how they voted. At polling places on election day, registered citizens receive a package containing one card for each candidate. While alone inside a closed booth, citizens choose a ballot and seal it into an envelope. Citizens then exit the booth and vote by depositing the sealed envelope into a ballot box. Polling officials are supposed to provide a method by which voters can dispose of the unused ballots privately before exiting the closed booth, but this rarely was done in the 1996 or 1997 elections.

Following the flawed 1997 legislative elections, international observers endorsed a series of reform measures, including the creation of a permanent and autonomous electoral commission to replace the present system of elections run by the Ministry of Territorial Administration. The Government's control of the electoral process leads to a variety of abuses including preelection manipulation of voter registration lists.

President Biya's October 1997 reelection was marred by serious procedural flaws as well as by a boycott by the three major opposition parties. While the boycott made the outcome a foregone conclusion, most observers nonetheless considered the contest to be neither free nor fair. Election irregularities especially were egregious in opposition strongholds, where boycotting opposition activists chose not to be present to monitor the voting count.

In December 1997, after the Supreme Court announced the official election results declaring President Biya the winner with 92.57 percent of the vote, the UNDP, which previously had been an opposition party, joined the CPDM in a coalition government. The new ruling coalition also included a faction of the UPC party, which was not the same faction that had participated in previous CPDM-dominated coalition governments under President Biya.

In 1998 talks between the ruling CPDM party and the leading opposition party, the SDF, broke down over the issue of creating an independent electoral commission, as recommended by most international observers of the 1992 and 1997 Presidential elections. The SDF demanded such a commission but the CPDM initially refused to grant this demand; however, on December 13, the National Assembly passed legislation to create a National Election Observatory (NEO) to monitor all stages of the electoral process; however, the legislation was not implemented by year's end.

The Biya administration has proven particularly intolerant of opposition from within its Beti/Bulu ethnic-regional base in the Center Province. Following the unexpectedly strong showing of opposition parties in the region in the 1996 municipal elections, Titus Edzoa, a ruling CPDM member from the southern part of the country, a former Minister of Health, and a longtime presidential aide, declared himself a candidate to oppose incumbent President Biya in the October 1997 election. Edzoa and his campaign manager were arrested shortly after he declared his candidacy and before the election was held. They were sentenced to 15 years' imprisonment on embezzlement and corruption charges and remained incarcerated at year's end (see Section 1.e.).

The President's control over the country's administrative apparatus is extensive. The President appoints all Ministers, including the Prime Minister, who serve at the President's pleasure. The President also directly appoints the governors of each of the 10 provinces. The governors wield considerable power in the electoral process, interpreting the laws and determining how these should be implemented. The President also has the power to appoint important lower level members of the 58 provincial administrative structures, including the senior divisional officers, the divisional officers, and the district chiefs. The governors and senior divisional officers wield considerable authority within the areas under their jurisdiction, including, significantly, the authority to ban political meetings that they deem likely to threaten public order. They also may detain persons for renewable periods of 15 days to combat banditry and other security threats.

The 1996 amendments to the 1972 Constitution retained a strongly centralized system of power, based on presidential authority. However, the amendments imposed a limit of two 7-year (in place of unlimited 5-year) terms on the President. They provided for the creation of a partially elected (70 percent) and partially appointed (30 percent) senate, along with the creation of a similarly constituted set of provincial assemblies with limited power over local affairs. Although promulgated by the President in January 1996, the senate and regional council amendments have not yet been implemented.

Citizens' right to choose their local governments remained circumscribed. In 1996 the Government held local government elections that were unprecedented in the Francophone region and the first such elections since the 1960's in the Anglophone region. These elections were for mayors or deputy mayors and council members in Douala, Yaounde, provincial capitals, and some division capitals. President Biya first promised such elections in 1992, but postponed them twice. In the meantime, the Government greatly increased the number of municipalities run by presidentially-appointed delegates, who have authority over elected mayors. Delegate-run cities, of which there were only four in 1992, by 1996 included most of the provincial capitals and some division capitals in pro-opposition provinces, but not in the southern provinces that had tended to support the CPDM. In 1998 a 60-member Committee on Good Governance, created by the Government, publicly recommended that the Government eliminate the position of delegate in order to allow elected local officials to manage municipal governments more freely. Even in municipalities with elected mayors, local autonomy is limited, since elected local governments must rely on the central Government for most of their revenues and their administrative personnel.

Like the 1992 National Assembly elections, the 1996 municipal elections were less flawed than other elections held since 1990. Foreign observers considered the elections largely free and fair, having detected few instances of malfeasance during or after the voting; however, opposition parties credibly alleged systematic preelection government manipulation of the registration lists and arbitrary government disqualification of their candidates, especially in the south. Government election authorities acknowledged that opposition candidates won 104 of the 336 offices at stake. Ninety-six contests in which the Government declared the ruling party candidate the winner were appealed to the Supreme Court, which declared itself unqualified to adjudicate many of these complaints, but nullified the results of 18 elections, which it ordered the Government to hold again. As of year's end, the Government had not complied with any of these Supreme Court orders.

There were no new developments in the 1999 criminalized civil libel case against SDF Party Chairman John Fru Ndi by a disgruntled former SDF official. Fru Ndi's February 1999 felony conviction still is pending an appeal in the Yaounde High Court. Some observers believe that Fru Ndi's conviction might enable the Government in the future to disqualify him for any public office for which he may seek to run.

Women are underrepresented in government and politics. There are no laws that specifically prohibit women or members of minorities from participating in government, in the political process, or in other areas of public life. Women hold 4 of 50 cabinet posts, 10 of 180 seats in the National Assembly, and few of the higher offices of major political parties, including the CPDM.

Many of the key members of the Government are drawn from the President's own Bulu/Beti ethnic group, as are disproportionately large numbers of military officers and CPDM officials. Members of some of the other 200 ethnic groups hold 30 cabinet seats, compared with 18 cabinet positions held by members of the President's ethnic group.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Domestic and international human rights monitoring groups generally have considerable latitude to operate. A large number of independent human rights monitoring groups exist, although the activities of virtually all are limited by a shortage of funds and trained personnel. The Government did not formally prevent human rights monitors from operating. In the past, the Government used its authority to approve or withhold official recognition of NGO's, but there have been no recent cases in which such recognition was withheld. However, Government officials repeatedly impeded the effectiveness of human rights NGO's by limiting access to prisoners, by refusing to share information, and increasingly by threatening and using violence against personnel of human rights NGO's (see Sections 1.c. and 1.d.).

Domestic human rights NGO's include the National League for Human Rights, the Organization for Human Rights and Freedoms, the Association of Women Against Violence, the Cameroonian Association of Female Jurists, the Cameroonian Association for Children's Rights, Conscience Africaine, the Movement for the Defense of Human Rights and Liberties (MDHRL), the Human Rights Defense Group, the National Association of Nontribalists and Nonracists, the Committee of Action for Women's and Children's Rights (CADEF), the Human Rights Clinic and Education Center, the Association of

Women against Violence, the Cameroon National Association for Family Welfare (CAMNAFAW), Tribes Without Frontiers (TSF), the Association for the Promotion of Communal Initiatives, and the League for Rights and Freedoms (LDL). A number of these groups issued press releases or reports detailing specific human rights violations. Many held seminars and workshops on various aspects of human rights.

In 1999 the Government generally cooperated with the U.N. Special Rapporteur for Human Rights on a visit to the Far North Province, but Colonel Pom's special antigang gendarmerie unit denied him access to its holding cells (see Section 1.c.). In 1999 the Government allowed the ICRC, for the first time in 7 years, to generally have unrestricted access to all prisons and detention places and to hold private discussions with inmates.

The governmental NCHRF, although hampered by a shortage of funds, conducted a number of investigations into human rights abuses, visited prisons, and organized several human rights seminars aimed at judicial officials, security personnel, and other government officers. Although the Commission infrequently condemned the Government's human rights abuses publicly, its staff intervened with government officials in specific cases of human rights harassment by security forces, attempted to stop Friday arrests (see Section 1.d.), and attempted to obtain medical attention for jailed suspects in specific cases. The law prohibits the NCHRF from publishing information on specific human rights cases. However, it may and does submit reports on specific alleged abuses to the government authorities directly involved, along with recommendations for improving conditions or punishing violators. During the year, the NCHRF sent teams to Douala to investigate allegations of extrajudicial killings by the Operational Command (see Section 1.a.). Although the Commissioner sent two reports to the President and the Prime Minister, there are no plans to release the reports publicly.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution does not explicitly forbid discrimination based on race, language, or social status. The Constitution prohibits discrimination based on sex and mandates that "everyone has equal rights and obligations," but the Government does not enforce these constitutional provisions effectively.

Women

Violence against women remains high. Women's rights advocates report that the law does not impose effective penalties against men who commit acts of domestic violence. There are no gender-specific assault laws, despite the fact that women are the predominant victims of domestic violence. Spousal abuse is not a legal ground for divorce. In cases of sexual assault, a victim's family or village often imposes direct, summary punishment on the suspected perpetrator through extralegal means ranging from destruction of property to beating. While there are no reliable statistics on violence against women, the large number of newspaper reports, which observers believe are a fraction of actual incidents indicates that it is widespread.

Despite constitutional provisions recognizing women's rights, women do not, in fact, enjoy the same rights and privileges as men. Civil law theoretically provides equal status and rights for men and women; however, no legal definition of discrimination exists, and some points of civil law are prejudicial to women. The 1981 Civil Code allows a husband to oppose his wife's right to work in a separate profession if the protest is made in the interest of the household and the family. While the law gives a woman the freedom to organize her own business, the Commercial Code allows a husband to end his wife's commercial activity by notifying the clerk of the commerce tribunal of his opposition based upon the family's interest. Partly for this reason, some employers require a husband's permission before they hire a woman. Polygyny is permitted by law and tradition, but polyandry is not. In cases of divorce, the husband's wishes determine the custody of children over the age of 6. While a man may be convicted of adultery only if the sexual act takes place in his home, a female may be convicted without respect to venue.

Civil law offers a more equal standard than customary law, which is far more discriminatory against women, since in many regions a woman customarily is regarded as the property of her husband. Because of the importance attached to customs and traditions, laws protecting women often are not respected. Despite the law that fixes a minimum age of 15 years for a

bride, many girls are married off by their families by the age of 12. In the customary law of some ethnic groups, husbands not only maintain complete control over family property, but also can divorce their wives in a traditional court without being required to provide either verifiable justification or alimony. Traditional law normally governs the extent to which a woman may inherit from her husband in the absence of a will, and customs vary from group to group. In many traditional societies, custom grants greater authority and benefits to male than to female heirs. Another problem facing women is forced marriage; in some regions, girls' parents can and do give them away in marriage without their consent. Often, the husband, who is sometimes many years older than the girl, pays a bride's parents a "bride price." Since a price has been paid, the girl is considered the property of the husband. When a married man dies, his widow often is unable to collect any inheritance, since she herself is considered part of the man's property. Often the widow is forced to marry one of the deceased's brothers. Refusal means that she must repay the bride price in full (she usually has no source of funds) and leave the family property. In the northern provinces, some Lamibe (traditional rulers) reportedly prevent their wives and concubines from leaving their palaces. The lack of a national legal code covering the family leaves women defenseless against male-oriented customs.

Children

The Constitution provides for a child's right to education, and schooling is mandatory through the age of 14. After almost a decade of budget cuts for education, the Government took measures during the year to improve access to schools. In February President Biya announced the elimination of tuition fees for public elementary schools. In June the National Assembly passed a budget bill that increased spending on national education by 49 percent. Nonetheless, education spending during the 1999/2000 fiscal year was only approximately 2 percent of GDP. Since parents must pay uniform and book fees for primary school, and because tuition and other fees for secondary education remain even more costly, education remains unaffordable for many children. According to 1998 Government statistics, approximately 3.5 million children, about 81 percent of all children, were enrolled in school. In practice although not in law, girls suffer from discrimination in access to education. The gap in school attendance rates between boys and girls is 9 percent nationally and 14 percent in the three northern provinces. This problem, which is especially acute in rural areas, results in higher levels of illiteracy among women than among men. According to a 1995 study by a U.N. agency, the adult literacy rate was 75 percent for men but only 52 percent for women. In addition fewer girls are found at higher levels of education; according to a 1992 study by the Ministry of Women's Affairs, women made up only 23 percent of postsecondary students.

While the Government has closed unlicensed primary and secondary schools in the past, there were no reports of such closings this year.

Female genital mutilation (FGM), which has been condemned by international health experts as damaging to both physical and psychological health, is not practiced widely, but it is traditional and continues to be practiced in some areas of Far North and Southwest Provinces. It includes the most severe form of the abuse, infibulation, and usually is practiced on preadolescent girls. The Government has criticized the practice; however, no law prohibits FGM.

The degree of familial child abuse is not known but is one of several targeted problems of children's rights organizations. During a crime wave in the country's largest cities of Yaounde and Douala, newspaper reports often cited children as victims of kidnapping, mutilation, and even infanticide. There were several credible stories of mothers (usually young, unemployed, and unmarried) abandoning newborns in streets, garbage cans, and pit toilets. The Yaounde-based Center for Helpless Children, created by the Minister of Social Affairs in 1997, currently harbors 24 abandoned or abused children, only a fraction of the suspected cases of abuse, abandonment, or neglect.

Reports also indicate an alarming trend in the country's prisons of incarcerating juvenile offenders with adult prisoners, occasionally in the same cells or wards (see Section 1.c.). There are credible reports of sexual abuse of juvenile prisoners by adult inmates. The law specifies that children should not be detained without trial beyond 3 months after an investigation, but the Government detains children for longer periods of time. In June press sources indicated that between 34 and 38 children are detained in the Douala New Bell Prison. Some children (particularly infants) are jailed with their detained mothers.

There were reports of forced child labor, child prostitution, and trafficking in children during the year (see Sections 6.c., 6.d., and 6.f.).

People with Disabilities

A 1983 law and subsequent implementing legislation provide certain rights for persons with disabilities. These include access to public institutions, medical treatment, and education. The Government is obliged to bear part of a disabled person's educational expenses, to employ disabled persons where possible, and, as necessary, to provide them with public assistance. However, these rights in fact rarely are respected. There are few facilities for disabled persons and little public assistance of any kind. Lack of facilities and care for the mentally disabled is particularly acute. In recent years, the Government reportedly has reduced the share of its expenditures that benefit disabled persons and has terminated subsidies to NGO's that help disabled persons. Society tends to treat the disabled as tainted, leaving churches or foreign NGO's responsible for providing assistance. However, there is no widespread societal discrimination against the disabled. The law does not mandate special access provisions to buildings and facilities for the disabled.

Indigenous People

A population of perhaps 50,000 to 100,000 Baka (Pygmies), a term that encompasses several different ethnic groups, primarily reside in the forested areas of the South and East provinces, of which Pygmies were the earliest known inhabitants. While no legal discrimination exists, other groups often treat Pygmies as inferior and sometimes subject them to unfair and exploitative labor practices. There have been credible reports of Pygmies being forced out of their homes by logging companies and security forces. There continued to be reports that Pygmies complain that the forests they inhabit are being logged without fair recompense for the negative consequences suffered by the Pygmies of the region. Some observers believe that sustained logging is destroying the Pygmies' unique, forest-oriented belief system, forcing them to adapt their traditional social and economic systems into a more rigid modern society similar to their Bantu neighbors. Some local activists also criticized possible effects from the Chad-Cameroon pipeline on nearby pygmy settlements.

Religious Minorities

Approximately 40 percent of the population are at least nominally Christian, about 20 percent are at least nominally Muslim, and about 40 percent practice traditional indigenous religions or no religion. Of Christians, approximately half are Catholics, and about half are affiliated with Protestant denominations. Christians are concentrated chiefly in the southern and western provinces; the two Anglophone provinces of the western region largely are Protestant; and the Francophone provinces of the southern and western regions largely are Catholic. Muslims are concentrated mainly in the northern provinces, where the locally dominant Fulani (or Peuhl) ethnic group is overwhelmingly Muslim, and other ethnic groups, known collectively as the Kirdi, generally are partly Islamicized. The Bamoun ethnic group of the western provinces is also largely Muslim. Traditional indigenous religions are practiced in rural areas throughout the country but rarely are practiced publicly in cities, in part because many such religions are intrinsically local in character.

Relations among different religious groups generally are amicable; however, some religious groups face societal pressures within their regions. In the northern provinces, especially in rural areas, societal discrimination by Muslims against persons who practice traditional indigenous religions is strong and widespread. Some Christians in rural areas of the north complain of discrimination by Muslims, but this reported discrimination may reflect ethnic as much as religious differences. The northern region suffers from ethnic tensions between the Fulani, a Muslim group that conquered most of the region 200 years ago, and the Kirdi, the descendents of groups that practiced traditional indigenous religions and whom the Fulani conquered or displaced, justifying their conquest on religious grounds. Although some Kirdi subsequently have adopted Islam, the Kirdi remain socially, educationally, and economically disadvantaged relative to the Fulani in the three northern provinces. The slavery still practiced in parts of the north is reported to be largely enslavement of Kirdi by Fulani (see Section 6.c.).

In the past, there have been occasional reports of isolated conflict between Christians and practitioners of traditional indigenous religions; however, no specific incidents or violence stemming from religious discrimination were reported this year.

National/Racial/Ethnic Minorities

The population is divided into more than 200 ethnic groups, among which there are frequent and credible allegations of discrimination. Members of virtually all ethnic groups commonly provide preferential treatment to fellow members when they are able to do so. Ethnic-regional differences continue to pose obstacles to political and economic liberalization.

Members of President Biya's Bulu ethnic group and of closely related Beti groups of southern parts of the country are represented disproportionately and hold key positions in government, the civil service, state-owned businesses, the security forces, the military, and the ruling CPDM party. The large size and centralized character of the public sector has long been perceived widely to favor these groups. Prospective economic and political liberalization is widely perceived as being likely to harm these groups, and to favor other groups, such as the large Bamileke and Anglophone ethnic-cultural groups of the west, whose members tend to be more active in private commerce and industry and have tended to support the SDF since the legalization of opposition parties. Since 1990 natives of the two Anglophone provinces, the Northwest and Southwest Provinces, have suffered disproportionately from human rights violations committed by the Government and its security forces (see Sections 1.c., 1.d., and 1.e.); have been underrepresented in the public sector; and generally believe that they have not received their fair share of public sector goods and services. Since the flawed 1992 presidential election (see Section 3), many residents of the Anglophone region have sought to achieve greater freedom, greater equality of opportunity, and better government, at least partly by regaining regional autonomy rather than through nationwide political reform. They have formed several quasipolitical organizations to pursue that goal.

At least one Anglophone group, the SCNC, advocates secession from the country. Subsequent to SCNC secessionist incidents in 1999, such activity calmed considerably during the year; however, the Government continued to hold some SCNC activists or suspected SCNC supporters in jail without trial (see Sections 1.c., 1.d., and 1.e.). The opposition SDF party (whose base of support rests in the Anglophone provinces) reiterated its commitment to pursuing nonviolent political struggle to restore a federal republic.

Northern areas of the country suffer from ethnic tensions between the Fulani (or Peuhl), a Muslim group that conquered most of the region 200 years ago, and the "Kirdi," the descendants of diverse groups who then practiced traditional indigenous religions and whom the Fulani conquered or displaced, justifying their conquest on religious grounds. Although some Kirdi subsequently have adopted Islam, the Kirdi remain socially, educationally, and economically disadvantaged relative to the Fulani in the three northern provinces. Traditional Fulani rulers (Lamibe) continue to wield great power over their subjects, often including Kirdi, sometimes subjecting them to tithing and forced labor (see Section 6.c.). The slavery still practiced in northern parts of the country is reported to be largely enslavement of Kirdi by Fulani. Although the UNDP party is based largely in the Fulani community, the ruling CPDM party has long been perceived widely to represent Fulani as well as Beti-Bulu interests.

During the 1990's, local-language broadcasts by government-controlled regional radio stations in southern areas of the country, as well as private French-language newspapers with close ties to leading government and CPDM figures, broadcast or printed anti-Bamileke and anti-Anglophone commentaries; however, there were no reports of these types of commentaries during the year.

Members of the country's large community of Nigerian immigrants often complain of illegal discrimination and even persecution by elements of the Government (see Section 2.d.). Government officials repeatedly have announced crackdowns on undocumented Nigerian immigrants.

Section 6 Worker Rights

a. The Right of Association

The 1992 Labor Code allows workers to form and join trade unions of their choosing. The Labor Code requires that unions register with the Government; it permits groups of at least 20 workers to organize a union by submitting a constitution, internal regulations, and non-conviction certifications for each of the 20 founding members. For unions in the private sector, the Government requires registration with the Ministry of Labor, Employment, and Social Insurance. Unions for public sector workers must register with the Ministry of Territorial Administration. The law does not permit the creation of a union that includes both public and private sector workers. The Government indicated that it remits certification within 1 month of union application; however, in practice, independent union especially in the public sector, have found it difficult to obtain registration. In addition the requirement for union registration apparently contradicts ILO Convention 87, to which the country signed and agreed in 1960, and which states that unions have the right to exist through declaration, not through Government recognition or registration. Registered unions are subject to Government interference. The Government chooses the unions with which it will bargain; some independent unions have accused the Government of creating small, non-representative unions amenable to the Government position and with which it can negotiate. Some sections of the Labor Code have never taken effect because the presidency has not issued implementing decrees.

There are two trade union confederations. Until 1995 the sole labor confederation was the Confederation of Cameroonian Trade Unions (CCTU), formerly affiliated with the ruling CPDM party under another name (the Organization of Cameroonian Trade Unions). In 1995 the Government encouraged the creation of a new labor confederation, the Union of Free Trade Unions of Cameroon (USLC), with which it maintains close ties. This move was seen as an effort by the Government to create a rival trade union confederation more firmly under its control. In 1997 the CCTU, government control of which had been eroding since large public sector salary cuts in 1993, split into two rival factions, and the Government banned a conference by the CCTU's reformist faction, led by Benoit Essiga. A CCTU Congress held in April 1999, which was attended by international observers and held under the auspices of the International Labor Organization (ILO), elected the reform faction slate of candidates to the CCTU leadership positions. However, the losing faction did not accept the results and continues to claim that it is the real CCTU. The Ministry of Labor, Employment, and Social Insurance has stated that it will not recognize the new CCTU leadership as long as another CCTU faction uses the same name. In September 1998, the new CCTU leadership took their case to court and won; however, the Ministry of Labor, Employment, and Social Insurance continues to withhold official status. Other ministries within the Government informally recognize the new CCTU leadership and include them in appropriate seminars and invitations. In a February press conference and an August "unity" conference, the Ministry of Labor, Employment, and Social Insurance appeared to back publicly the losing CCTU faction at the expense of the reformist faction. However, a court declared the August unity conference, attended by 400 people, illegal, stating that only the reformist faction of the CCTU had the power to convoke such a conference.

The Labor Code explicitly recognizes workers' right to strike, but only after mandatory arbitration. Arbitration proceedings are not enforceable legally and can be overturned or simply ignored by the Government. The Labor Code provides for the protection of workers engaged in legal strikes and prohibits retribution against them. However, these provisions of the Labor Code do not apply to civil servants, employees of the penitentiary system, or workers responsible for national security. Instead of strikes, civil servants are required to negotiate grievances directly with the minister of the concerned department and with the Minister of Labor.

During the year, labor unrest continued. There were strikes by workers in the privatized railroad company Camrail, the sugar producing company of Camsuco, the cotton producing company of Cicam, as well as strikes by some elementary and secondary school teachers and employees of the Douala Municipal Council. The National Autonomous Union of Telecommunications Workers (SYNATTEL) also discussed and negotiated salary and benefit issues, despite the Government's argument that it had not obtained full legal recognition.

The CCTU is a member of the Organization of African Trade Unions and the International Confederation of Free Trade Unions. The USLC is a member of the Organization of African Trade Unions.

b. The Right to Organize and Bargain Collectively

The Labor Code provides for collective bargaining between workers and management in workplaces, as well as between labor federations and business associations in each sector of the economy; however, no formal collective bargaining negotiations have taken place since 1996. When labor disputes arise, the Government chooses which labor union to invite into the negotiations, selectively excluding some labor representatives. Once agreements are negotiated, there is no mechanism to enforce implementation; some agreements between the Government and labor unions have been shelved or ignored by the Government after being negotiated. The Labor Code prohibits antiunion discrimination, and employers guilty of such discrimination are subject to fines of up to an amount equivalent to approximately \$1,600 (1 million CFA). However, employers found guilty are not required to compensate the workers against whom they discriminated, or to reinstate fired workers. The Ministry of Labor has reported no complaints of such discrimination during recent years; however, one organizer of the Union for Telecommunications Workers claims that his state-owned company demoted him due to his union activism.

In November the Prefet of Dschang arrested two union leaders--university professors trying to organize the University of Dschang--allegedly because of an unsigned labor agreement (see Section 1.d.); ten others also were questioned. They were released the next day. There is an industrial free trade zone regime, but the Government did not grant approval to any firms to operate under it during the year. Free trade zone employers are exempt from some provisions of the Labor Code but must respect all internationally recognized worker rights.

c. Prohibition of Forced or Compulsory Labor

The Constitution and the Labor Code prohibit forced or compulsory labor; however, it occurs in practice. The authorities continued to allow prison inmates to be contracted out to private employers or used as communal labor for municipal public works. Forced or bonded labor by children is not prohibited specifically, and there were reports that it occurs in practice (see Sections 5 and 6.f.).

On August 24, gendarmes released Bassy Okon Edet, a Nigerian fisherman, after a 7-day incarceration (see Section 1.d.). Edet claims that the gendarmes forced him to do labor during his incarceration.

There were credible reports that slavery continued to be practiced in northern parts of the country, including in the Lamidat of Rey Bouba, a traditional kingdom in the North Province (see Section 5). In the South and East Provinces, some Baka (Pygmies), including children, continued to be subjected to unfair and exploitative labor practices by landowners, such as working on the landowners' farms during harvest seasons without payment (see Section 5). There were reports of trafficking in children (see Sections 5 and 6.f.).

d. Status of Child Labor Practices and Minimum Age for Employment

A 1969 Ministry of Labor order and the 1992 Labor Code provide the legal framework for the protection of children in the field of labor and education, and specify penalties ranging from fines to imprisonment for infringement of the law. In April 1998, the National Assembly authorized President Biya to ratify ILO Convention 138 regarding to employment of children; however, the President has not signed the bill. Article 86 of the Labor Code and the Ministerial Order both set the minimum age for the employment of children at 14. The Ministerial Order also bans night work and enumerates tasks that cannot be performed legally by children between the ages of 14 and 18. These tasks include moving heavy weights, dangerous and unhealthy tasks, working in confined areas, or tasks that could hurt a child's morality. The order also states that a child's workday cannot exceed 8 hours. In order to improve knowledge and education of children between the ages of 14 and 18, employers are required to train them. To this end, work contracts must contain a training provision for these minors. The law prohibits children from working before 6 a.m. or after midnight, though enforcement of this law is inefficient.

According to an ILO study conducted during the year in conjunction with local NGO's and the Ministry of Labor, child labor remains a serious problem, although the Government has made some progress to address it. The ILO estimates there are 602,000 child laborers. In the nation's major cities of Yaounde, Douala, and Bamenda, from March to April, the ILO estimated

that 40 percent of employed children were female, 7 percent were less than 12 years of age, and 60 percent had dropped out of primary schools. Primary education is compulsory through the age of 14, but the relatively high cost for school precludes many children from attending.

The Ministry of Social Affairs and the Ministry of Labor are responsible for enforcing existing child labor laws through site inspections of registered businesses; however, lack of resources inhibits an effective inspection program. Moreover, the legal prohibitions do not include family chores, which in many instances are beyond a child's capacity to do. According to the ILO study, child labor in cities exists mainly in the informal sector such as street vending and car washing or other non-qualified jobs. An increasing number of children work as household help, and some children are involved in prostitution. In the north of the country, there are credible reports that children from needy homes are placed with other families to do household work for money.

In rural areas, many children begin work at an early age on family farms. Often, relatives employ rural youth, especially girls, as domestic helpers, while many urban street vendors are less than 14 years of age.

The Government is a signatory to ILO Convention 182; however, the National Assembly had not ratified the convention by year's end.

Forced or bonded labor by children is not prohibited specifically, and there were reports that it occurs in practice (see Section 6.c. and 6.f.).

e. Acceptable Conditions of Work

Under the Labor Code, the Ministry of Labor is responsible for setting a single minimum wage applicable nationwide in all sectors. The minimum wage is approximately \$40 (23,514 CFA) per month. It does not provide a decent standard of living for an average worker and family.

The Labor Code establishes a standard workweek of 40 hours in public and private nonagricultural firms, and 48 hours in agricultural and related activities. The code makes compulsory at least 24 consecutive hours of weekly rest.

The Government sets health and safety standards, and Ministry of Labor inspectors and occupational health doctors are responsible for monitoring these standards; however, they lack the resources for a comprehensive inspection program. There is no specific legislation permitting workers to remove themselves from dangerous work situations without jeopardy to continued employment.

f. Trafficking in Persons

The Penal Code provides that any person who engages in any trafficking in persons shall be punished with imprisonment of from 10 to 20 years and that the court may also impose a forfeiture penalty. Trafficking is a problem, and an ILO report during the year pinpointed trafficking in children as especially serious.

An ILO study conducted in March and April in Yaounde, Douala, and Bamenda revealed that trafficking accounted for 84 percent (or approximately 530,000) of an estimated 610,000 child laborers (see Sections 5 and 6.c.). In most cases, intermediaries presented themselves as businessmen, approaching parents with large families or custodians of orphans and promising to assist the child with education or training. The intermediary paid parents an average of \$8 (6,000 CFA) before taking the child, transporting the child to the city where the intermediary would subject the child to forced work for remuneration which was far below the minimum wage level. In 4 out of 10 cases, the child was a foreigner transported to the country for labor. The report also indicated that the country is a transit country for regional traffickers as well, transporting children between Nigeria, Benin, Niger, Chad, Togo, the Republic of the Congo, and the Central African Republic.

While there has been no study on trafficking in persons besides children, anecdotal evidence from the NCHRF indicates that there may also be some trafficking in adults, primarily women, as well. No NGO's were known to be working to reduce trafficking in persons.

The Government has condemned the practice of trafficking in persons, and the Ministry of Labor, Employment, and Social Insurance is responsible for fighting trafficking. However, that ministry is severely under-funded, and there are no known cases of prosecution of traffickers or protection of victims.

[End.]

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